

The Limited Liability Partnership Rules, 2009

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[The Limited Liability Partnership Rules, 2009](#)

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[G.S.R. 229\(E\), dated 1.4.2009. - In exercise of the powers conferred by sub-sections \(1\) and \(2\) of section 79 of the Limited Liability Partnership Act, 2008 \(](#)

[6 of 2009](#)

[\), the Central Government hereby makes the following rules, namely: -](#)

[{|](#)

[|-](#)

[| Brought into force on 31.5.2009, vide S.O. 1324\(E\), dated 22.5.2009.](#)

[|}](#)

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These rules may be called The Limited Liability Partnership Rules, 2009.

(2)

(a)

Rules 1 to 31, rules 34 to 37 and rule 41 of these rules shall come into force on the 1st day of April, 2009;

(b)

rules 32 and 33 and rules 38 to 40 of these rules shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(i)

"Act" means the Limited Liability Partnership Act, 2008 (6 of 2009

);

(ii)

"Annexure" means Annexure to these rules;

(iii)

"Certifying Authority" means a person who has been granted a license to issue a Digital Signature Certificate under section 24 of the Information Technology Act, 2000 (21 of 2000

);

(iv)

[Designated Partnership Identification Number (DPIN) means an identification number which the Central Government may allot to any individual, intending to be appointed as designated partner of a Limited Liability Partnership for the purpose of his identification as such, and includes Directors Identification Number (DIN) issued under Sections 266A, 266B and 266E of the Companies Act, 1956 and rules made thereunder.]

[Substituted by Notification No. G.S.R. 506 (E) dated 5.7.2011 (w.e.f. 1.4.2009)]

(v)

"digital signature" means authentication of any electronic record by a subscriber by means of an electronic method or procedure in accordance with the provisions of section 3 of the Information Technology Act, 2000;

(vi)

"Digital Signature Certificate" means a Digital Signature Certificate issued under sub-section (4) of section 35 of the Information Technology Act, 2000;

(vii)

"electronic record" means electronic record as defined under clause (t) of section 2 of the Information Technology Act, 2000;

(viii)

"electronic registry" means an electronic repository or storage system in which the information or documents are received, stored, protected and preserved in electronic form;

(ix)

"Electronic mail (E-mail)" means message sent, received or forwarded in digital form via a computer-based communication mechanism;

(x)

"Officer" includes any partner, designated partner, employee of the LLP, any person in accordance with whose directions or instructions the partners of the LLP have been accustomed to act and any person authorised to accept any

service on behalf of a foreign Limited Liability Partnership and partners of such foreign Limited Liability Partnership;

(xi)

"Pre-fill" means the automated process of data input by the computer system from the database maintained in electronic registry;

(xii)

"Provisional Designated Partner Identification Number" refers to the provisional identification number generated by the electronic system setup by the Ministry of Corporate Affairs;

(xiii)

"Registrar" means a Registrar as defined under clause (s) of sub-section (1) of section 2 of the Act;

(xiv)

"Registrar's Front Office" means an office maintained by the Central Government or an agency authorised by it to facilitate e-filing of documents into the electronic registry and their inspection and viewing;

(xv)

"section" means section of the Act;

(xvi)

"website" means a location connected to the internet that maintains one or more web pages.

(2)

Words and expressions used in these rules and not defined shall have the meaning respectively assigned to them in the Limited Liability Partnership Act, 2008 (

6 of 2009

) and the Information Technology Act, 2000 (

21 of 2000

).

3.

Forms.

(1)

Every LLP shall use the forms annexed to these rules for the purposes of the Act.

(2)

Every LLP shall specify therein its limited liability partnership identification number (LLPIN).

(3)

[Form RUN-LLP (Reserve Unique Name-Limited Liability Partnership), Form FiLLiP (Form for incorporation of Limited Liability Partnership), Form 5, Form 17 and Form 18 shall be processed by the Registrar, Central Registration Centre (CRC) for and on behalf of the jurisdictional Registrar.

Explanation. - For the purposes of this sub-rule, Central Registration Centre means the office of Central Registration Centre as established under sub-sections (1) and (2) of section 396 of the Companies Act, 2013 (

18 of 2013

) by the Government of India vide notification number S.O. 218(E), dated 22nd January., 2016]

[Inserted by Notification No. S.O. 896 (E), dated 18.9.2018 (w.e.f. 1.4.2009).]

4.

Authentication of electronic forms.

- The electronic form shall be authenticated by authorised signatories using digital signatures, as defined under the Information Technology Act, 2000 (

21 of 2000

).

5.

Fees.

(1)

The fees payable in pursuance of the various provisions of the Act and these rules shall be as mentioned in Annexure "A".

(2)

The fees payable in pursuance of the Act or any rule made or notification issued thereunder shall be paid into the Public

Account of India:

Provided that the fees payable to the Registrar may be paid also through postal orders (where the amount involved does not exceed fifty rupees) or through bank drafts payable at and/or drawn on post offices or banks, as the case may be, located at the same city or town where the office of the Registrar is situated:

Provided further that, where a fee payable to the Registrar is paid through postal orders or bank drafts as aforesaid, it shall not be deemed to have been paid unless and until the relevant postal orders or drafts are cashed and the amount credited:

Provided also that, where application is filed through electronic media or through any other computer readable media, the user may choose any one of the following payment options namely,-

(i)

Credit Card; or

(ii)

Internet Banking; or

(iii)

Remittance at the Bank Counter; or

(iv)

any other mode as approved by the Central Government.

6.

The manner and conditions of filing, recording or registering of documents, forms, notices, statements, returns, etc., shall be as laid down in Chapter XIII of these rules.

Chapter II

Nature Of Limited Liability Partnership

7.

For the purposes of sub-section (3) of section 7, an individual shall give his prior consent to act as a designated partner to the limited liability partnership in Form 9.

8.

For the purposes of sub-section (4) of section 7, the particulars of an individual who has given his consent to act as designated partner shall be filed in Form 4 along with fee as mentioned in Annexure "A".

9.

(1)

A person shall not be capable of being appointed as a designated partner of a limited liability partnership, if he-

(a)

has at any time within the preceding five years been adjudged insolvent; or

(b)

suspends, or has at any time within the preceding five years suspended payment to his creditors and has not at any time within the preceding five years made, a composition with them; or

(c)

has been convicted by a Court for any offence involving moral turpitude and sentenced in respect thereof to imprisonment for not less than six months; or

(d)

has been convicted by a Court for an offence involving section 30 of the Act.

(2)

The Central Government may, by notification in the Official Gazette, remove the disqualification incurred by any person by virtue of clauses (a) or (b) of sub-rule (1), either generally or in relation to any limited liability partnership or limited liability partnerships specified in the notification.

Chapter III

Designated Partner's Identification Number

10.

[

[Substituted by Notification No. G.S.R. 506 (E) dated 5.7.2011 (w.e.f. 1.4.2009)]

[(1) Every individual, who intends to be appointed as a designated partner of an existing limited liability partnership, shall

make an application electronically in Form DIR-3 under the Companies (Appointment and Qualifications of Directors) Rules, 2014 for obtaining DPIN under the Limited Liability Partnership Act, 2008 and such DIN shall be sufficient for being appointed as designated partner under the Limited Liability Partnership Act, 2008.]

(2)

If a person holds both DIN and DPIN, his DPIN shall stand cancelled and DIN shall be sufficient for being appointed as Designated Partner under Limited Liability Partnership Act, 2008.

(3)

Every designated partner, shall intimate his consent to become a designated partner to the limited liability partnership and DPIN, in Form-9 and the LLP shall intimate such DPIN to Registrar on Form-4.

(4)

[(i) Every individual who has been allotted a DPIN or DIN under these rules, shall in the event of any change in his particulars, make an application in Form DIR-6 under Companies (Appointment and Qualifications of Directors) Rules, 2014 to intimate such change(s) to the Central Government within a period of thirty days of such change(s).]

[Substituted by Notification No. G.S.R. 557(E), dated 12.6.2018 (w.e.f. 1.4.2009)]

(ii)

The concerned designated partner shall fill-in the relevant changes to the limited liability partnership(s) on which he is a designated partner within 30 days of such changes.]

10.(1) Every individual or nominee of a body corporate, who is intending to be appointed as designated partner of a limited liability partnership shall make an application electronically in Form 7 to the Central Government for obtaining Designated Partner Identification Number (DPIN).

(2) The Central Government shall provide an electronic system to facilitate submission of application for the allotment of DPIN through a portal on the website of the Ministry of Corporate Affairs.

(3) The applicant shall access the Form 7 from the portal, fill-in the required particulars sought therein and use "submit" function provided therein upon which the system will electronically generate and indicate in the space provided a Provisional DPIN.

(4) A provisional DPIN generated online under sub-rule (3) by the applicant will remain valid for a period of sixty days from the date on which it was generated.

(5)(i) The applicant shall, after the allotment of provisional DPIN, submit an application to the Central Government along with the fee as mentioned in Annexure "A" for the allotment of regular DPIN within sixty days from the date on which provisional DPIN was generated on-line, failing which the provisional DPIN will lapse.

(ii) For making an application under sub-rule (i), the applicant shall take a print out of Form 7, affix his photograph in the space provided in that Form, enclose true copies of the proof of identity and proof of residence and physically sign the form at the place specified therein. The photograph and the proof of identity and residence shall be certified by any one of the following authorities:-

(a) Gazetted Officer of the Central or State Government,

(b) Notary Public,

(c) Chartered Accountant, Cost Accountant or Company Secretary holding a certificate of practice under the Chartered Accountants Act, 1949, the Cost and Works Accountants Act, 1959 and the Company Secretaries Act, 1980, respectively.

(6) The Central Government shall process the applications received for allotment of DPIN under sub-rule (5), decide on such application and communicate approval along with the DPIN allotted or rejection thereof to the applicant by way of a letter by post or electronically or in any other mode, within a period of one month from the receipt of such application:

(7) The DPIN so allotted is valid for the life time of such applicant and shall not be allotted to any other person in any case.

(8) Every designated partner shall intimate his consent to become a designated partner to the limited liability partnership and DPIN in Form 9 and the LLP shall intimate such DPIN to Registrar in Form 4.

(9)(a)(i) Every designated partner, who has been allotted a DPIN under these rules shall, in the event of any change in his particulars as stated in Form 7 under sub-rule (5), intimate such change(s) to the Central Government within a period of 30 days of such change(s) in Form 10:

(ii) The concerned designated partner shall also intimate such changes to the limited liability partnership or limited liability partnership(s) on which he is a designated partner within 30 days of such changes.

(b) The designated partners shall fill-in the relevant change(s) in prescribed Form 10, enclose a copy of the proof of the changed particulars duly certified in the manner specified in clause (ii) of sub-rule (5), affix signature at the place specified, and file the same to the Central Government. There shall be no fee for intimating the changes in particulars in Form 10.

(10) The Central Government, after being satisfied, through verification of such changed particulars from the enclosed copy of proof, shall incorporate the said change and inform the designated partner by way of a letter issued by post or electronically or in any other mode confirming the effect of such change in the electronic database maintained by the Ministry of Corporate Affairs.

Chapter IV

Incorporation Of Limited Liability Partnership

11.

[

[Substituted by Notification No. S.O. 896 (E), dated 18.9.2018 (w.e.f. 1.4.2009).]

(1)

For the purposes of section 11, the incorporation document shall be filed in Form FiLLiP with the Registrar having jurisdiction over the State in which the registered office of the limited liability partnership is to be situated alongwith fee as provided in Annexure 'A':

Provided that if an individual required to be appointed as designated partner does not have a DPIN or DIN, application for allotment of DPIN shall be made in Form FiLLiP :

Provided further that the application for allotment of DPIN shall not be made by more than two individuals in Form FiLLiP:

Provided also that an application for reservation of name may be made through Form FiLLiP:

Provided also that where an applicant had applied for reservation of name under rule 18 in Form RUN-LLP and which has been approved, he may fill the reserved name as the proposed name of limited liability partnership.

(2)

(a)

Where the Registrar, on examining Form FiLLiP, finds that it is necessary to call for further information or finds such application or document to be defective or incomplete in any respect, he shall give intimation to the applicant to remove the defects and re-submit the e-form within fifteen days from the date of such intimation given by the Registrar.

(b)

After re-submission of the document, if the Registrar still finds that the document is defective or incomplete in any respect, he shall give one more opportunity of fifteen days time to remove such defects or deficiencies:

Provided that the total period for re-submission of documents shall not exceed thirty days.

(3)

The Certificate of Incorporation of limited liability partnership shall be issued by the Registrar in Form 16.]

[12. Where the intending partner is a body corporate, copy of Resolution on the letterhead of such body corporate to become a partner in the proposed LLP and a copy of resolution or authorization of such body corporate also on letterhead mentioning the name and address of an individual nominate to act as nominee or nominee & Designated Partner on its behalf shall be attached.

Provided that in the case of foreign nationals residing outside India or foreign body corporate(s) registered outside India, seeking to register a LLP in India, the name, address and signature of an individual or nominee or nominee & Designated Partner of a body corporate on the incorporation document, proof of identity, where required and documents referred in the rule, shall be duly certified and the provisions of sub-rule (2) of rule 34 of these rules, shall apply mutatis mutandis for this purpose.]

13.

The statement to be filed along with the incorporation document under clause (c) of sub-section (1) of section 11 shall be in the format provided in Part B of [Form FiLLiP]

[Substituted 'Form 2' by Notification No. S.O. 896 (E), dated 18.9.2018 (w.e.f. 1.4.2009).]

.

14.

(1)

In the office of Registrar there shall be maintained a Register of LLPs in which the names of LLPs shall be entered in the order in which they are registered.

(2)

Every LLP so registered shall be assigned a LLP identification number (LLPIN) in one consecutive series.

15.

(1)

A document can be served on a limited liability partnership or a partner or designated partner thereof through the following other modes-

(i)

electronic transmission;

(ii)

courier

(2)

For the purposes of this rule,-

(i)

"electronic transmission" means a communication-

(a)

delivered by-

(A)

facsimile telecommunication or electronic mail when directed to the facsimile number or electronic mail address, respectively, which the partnership or the partner or the designated partner has provided from time to time for sending communications to the partnership or the partner or the designated partner respectively;

(B)

posting on an electronic message board or network that the partnership or the partner or the designated partner has designated for those communications, and which transmission shall be validly delivered upon the posting, or

(C)

other means of electronic communication, as to which the LLP or the partner or the designated partner has placed in effect reasonable measures to verify that the sender is the person purporting to send the transmission, and

(b)

that creates a record that is capable of retention, retrieval and review, and that may thereafter be rendered into clearly legible tangible form.

(ii)

courier means a document sent through a courier which provides the proof of delivery.

16.

(1)

A limited liability partnership shall give an address for service of documents within the jurisdiction of the Registrar where its registered office is situate. Such address shall include the postal code and e-mail address.

(2)

The limited liability partnership, may, in addition to the registered office address, declare any other address as its address for service of documents, under sub-section (2) of section 13, in the manner as laid down in the limited liability partnership agreement. Where the limited liability partnership agreement does not provide for such manner, consent of all partners shall be required for declaring any other address as the address for service of documents.

(3)

The intimation of other address for service of documents to LLP shall be given to the Registrar in Form 12, within thirty days of complying with the requirements of sub-rule (2) above along with the fee as mentioned in Annexure 'A'.

(4)

The effective date for the service of documents to LLP at the other address declared by the LLP cannot be prior to the date of filing of document under sub rule (3).

17.

(1)

The limited liability partnership may change its registered office from one place to another by following the procedure as

laid down in the limited liability partnership agreement. Where the limited liability partnership agreement does not provide for such procedure, consent of all partners shall be required for changing the place of registered office of limited liability partnership to another place:

Provided that where the change in place of registered office is from one State to another State, the limited liability partnership having secured creditors shall also obtain consent of such secured creditors.

(2)

For the purposes of sub-section (3) of section 13, notice of change of place of registered office shall be given to Registrar in Form 15, within 30 days of complying with the requirements of sub-rule (1), in case of change of registered office within the same state, and within 30 days of complying with sub-rule (4) in case of change of registered office from one state to another state, along with fee mentioned in Annexure 'A'.

(3)

Where there is any conviction, ruling, order or judgment of any Court, tribunal or other authority against the limited liability partnership, the particulars of such prosecutions initiated against or show cause notices received by the limited liability partnership for the alleged offences under the LLP Act shall be stated in the notice of change of place of registered office to be filed with the Registrar.

(4)

Where the change in place of registered office is from one state to another state, the limited liability partnership shall publish a general notice, not less than 21 days before filing any notice with Registrar, in a daily newspaper published in English and in the principal language of the district in which the registered office of the limited liability partnership is situated and circulating in that district giving notice of change of registered office.

(5)

Where the change in place of registered office is from one place to another place within the state from the jurisdiction of one Registrar to the jurisdiction of another Registrar or from one state to another state, the limited liability partnership shall file the notice in Form 15 with the Registrar from where the limited liability partnership proposes to shift its registered office with a copy thereof for the information to the Registrar under whose jurisdiction the registered office is proposed to be shifted.

18.

(1)

The name of the limited liability partnership shall not be one prohibited under the Emblems and Names (Prevention of Improper Use) Act, 1950.

(2)

A name shall not generally be reserved, if -

(i)

it includes any word or words which are offensive to any section of the people;

(ii)

the proposed name is the exact Hindi or English translation of the name of an existing limited liability partnership in English or Hindi, as the case may be;

(iii)

the proposed name has a close phonetic resemblance to the name of a LLP in existence, for example, J.K. LLP., Jay Kay LLP;

(iv)

it includes the word Co-operative, Sahakari or the equivalent of word "co-operative" in the regional languages of the country;

(v)

it connotes the participation or patronage of the Central or State Government, unless circumstances justify to, e.g., a name may be deemed undesirable in certain context if it includes any of the words such as National, Union, Central, Federal, Republic, President, Rashtrapati, etc;

(vi)

the proposed name contains the words "British India";

(vii)

the proposed name implies association or connection with any Embassy or Consulate or of a foreign Government which

suggests connection with local authorities such as Municipal, Panchayat, Zila Parishad or any other body connected with the Union or State Government;

[***]

[Omitted '(viii) the proposed name is vague like D.I.M.O. Limited liability partnership or I.V.N.R. Limited liability partnership or S.S.R.P Limited liability partnership;' by Notification No. S.O. 896 (E), dated 18.9.2018 (w.e.f. 1.4.2009).]

(ix)

it is different from the name or names of the existing limited liability partnership only to the extent of having the name of a place within brackets before the word "limited liability partnership", for example, Indian Press (Delhi) LLP should not be allowed in view of the existence of the LLP named Indian Press LLP;

[Provided that the name shall be reserved, in case the "No Objection Certificate" is granted by the registered Limited Liability Partnership of company, as the case may be.]

[Inserted by Notification No. G.S.R. 430 (E) dated 5.6.2012 (w.e.f. 11.6.2012)]

(x)

it includes name of registered Trade mark, unless the consent of the owner of the trade mark has been produced;

(xi)

the proposed name is identical with or too nearly resembles the name of a firm or LLP or company incorporated outside India and reserved by such firm, LLP or company with the registrar in accordance with these rules;

(xii)

it is identical with or too nearly resembles the name of the limited liability partnership or a company in liquidation or it is identical with or too nearly resembles names of the LLP or a company which is struck off, up to the period of 5 years;

(xii)

[it includes words like 'Bank', 'Insurance', and 'Banking', 'Venture capital' or 'mutual fund' or business activity includes the words like 'Bank', 'Insurance', and 'Venture capital' or 'mutual fund' or such similar names without the approval of regulatory authority:

[Substituted by Notification No. G.S.R. 430 (E) dated 5.6.2012 (w.e.f. 11.6.2012)]

Provided that the approval of regulatory authority shall be obtained at the time of application for incorporation or change of name of an existing Limited Liability Partnership, as the case may be.]

[***]

[Omitted '(xiv) it is intended or likely to produce a misleading impression regarding the scope or scale of its activities which would be beyond the resources at its disposal;' by Notification No. S.O. 896 (E), dated 18.9.2018 (w.e.f. 1.4.2009).]

(xv)

the proposed name includes words like French, British, German, etc., unless the partners satisfy that there is some form of collaboration and connection with the foreigners of that particular country or place, the name of which is incorporated in the name;

(xvi)

the proposed name of limited liability partnership includes the words company secretary, chartered accountant, advocates or such similar words as indicative of a profession, as part of the proposed name, the same shall be allowed only after obtaining approval from the Council governing such profession or such authority as may be nominated by the Central Government, in this behalf.

[Provided that the approval of the council governing the profession shall be obtained at the time of application for incorporation or change of name of an existing Limited Liability Partnership, as the case may be.]

[Inserted by Notification No. G.S.R. 430 (E) dated 5.6.2012 (w.e.f. 11.6.2012)]

(3)

A foreign LLP or a foreign company may on payment of fee as mentioned in Annexure `A', apply in Form 25 to the Registrar for reserving its existing name by which it is registered in the country of its regulation or incorporation:

Provided that such reservation shall be valid for three years but may be renewed on a fresh application along with payment of fee as provided in Annexure "A".

(4)

An application for reservation of name with which the proposed limited liability partnership is to be registered or for change of name, as the case may be, shall be made to the Registrar having jurisdiction where the registered office of

the limited liability partnership is to be situated.

(5)

[Every such application shall be made through the web service, RUN-LLP, available at www.mca.gov.in and be accompanied by fee as mentioned in Annexure 'A', which may either be approved or rejected, as the case may be, by the Registrar after allowing a re-submission of such application within fifteen days for rectification of defects.]

[Substituted by Notification No. S.O. 896 (E), dated 18.9.2018 (w.e.f. 1.4.2009).]

(6)

Where the Registrar informs applicant about reservation of name with which the LLP is to be registered or changed name, as the case may be, such name shall be available for reservation for a period of three months from the date of intimation by the Registrar.

19.

(1)

A limited liability partnership or a body corporate or any other entity which already has a name which is similar to or which too nearly resembles the name of a limited liability partnership incorporated subsequently, may apply to the Registrar in Form 23 to give a direction to that limited liability partnership incorporated subsequently to change its name.

(2)

The application under sub-rule (1) shall state-

(i)

the LLPIN of limited liability partnership, or the CIN of the company or the registration number of the other entity as the case may be;

(ii)

the name with which the limited liability partnership or the company or any other entity was incorporated or registered;

(iii)

the grounds of objection to the name of the limited liability partnership incorporated subsequently.

(3)

The application shall be verified by the person making it.

(4)

The person making the application shall attach-

(a)

the authority under which he is making such an application;

(b)

a copy of the incorporation certificate of the limited liability partnership or the company or the registration certificate of the entity, as the case may be.

(5)

The application shall be accompanied by a fee as mentioned in Annexure "A".

20.

(1)

The limited liability partnership may change its name by following the procedure as laid down in the limited liability partnership agreement. Where the limited liability partnership agreement does not provide such procedure, consent of all partners shall be required for changing the name of the limited liability partnership.

(2)

Notice of change of name shall be given to the Registrar in Form 5, within 30 days of complying with requirement of sub-rule (1), along with a fee as mentioned in Annexure 'A'.

(3)

The Registrar on being satisfied that the changed name is the one as reserved by him shall issue a fresh certificate of incorporation in the new name and the changed name shall be effective from the date of such certificate.

Chapter V

Partners And Their Relations

21.

(1)

For the purposes of sub-section (2) of section 23, every limited liability partnership shall file information with regard to

the limited liability partnership agreement in Form 3 with the Registrar within thirty days of the date of incorporation alongwith the fee as provided in Annexure "A":

Provided that any change made in the limited liability partnership agreement shall be filed in Form 3 within thirty days of such change alongwith the fee as provided in Annexure "A".

[For the purposes of sub-section (3) of section 23, every limited liability partnership shall get the limited liability partnership agreement, referred to in that sub-section, rectified by all the partners immediately after incorporation and shall file information contained therein in Form 3 with the Registrar within thirty days of the incorporation of the limited liability partnership alongwith the fee as provided in Annexure A.]

[Substituted by Notification No. G.S.R. 24(E) dated 7.1.2010 (w.e.f. 11.1.2010)]

22.

(1)

For the purposes of sub-section (1) of section 25, every partner shall intimate change in his name or address to the limited liability partnership in Form 6.

(2)

For the purposes of sub-section (2) of section 25, where a person becomes or ceases to be a partner or where there is any change in the name or address of a partner, the limited liability partnership shall file with the Registrar, a notice in Form 4.

(3)

For the purposes of sub-section (3) of section 25, in respect of notice of a person becoming a partner, the Form 4 shall include a statement signed by the incoming partner that he consents to become a partner.

(4)

The form shall be accompanied by a certificate from a Chartered Accountant in practice or Cost Accountant in practice or a Company Secretary in practice that he has verified the particulars from the books and records of the limited liability partnership and found them to be true and correct.

(5)

The fees to be paid to the registrar in pursuance of sub-section (3) of section 25 shall be as mentioned in Annexure "A".

Chapter VI

Form Of Contribution

23.

(1)

The contribution of each partner shall be accounted for and disclosed in the Accounts of the LLP along with nature of contribution and amount.

(2)

The contribution of a partner consisting of tangible, movable or immovable or intangible property or other benefits brought or contribution by way of an agreement or contract for services shall be valued by a practicing Chartered Accountant or by a practicing Cost Accountant or by approved valuer from the panel maintained by the Central Government.

Chapter VII

Financial Disclosures

24.

(1)

Every limited liability partnership shall keep books of accounts which are sufficient to show and explain the limited liability partnership's transactions and are such as to-

(a)

disclose with reasonable accuracy, at any time, the financial position of the limited liability partnership at that time; and

(b)

enable the designated partners to ensure that any Statement of Account and Solvency prepared under this rule complies with the requirements of the Act.

(2)

The books of account shall contain-

(a)

particulars of all sums of money received and expended by the limited liability partnership and the matters in respect of which the receipt and expenditure takes place;

(b)

a record of the assets and liabilities of the limited liability partnership;

(c)

statements of cost of goods purchased, inventories, work-in-progress, finished goods and cost of goods sold; and

(d)

any other particulars which the partners may decide.

(3)

The books of account which a limited liability partnership is required to keep shall be preserved for eight years from the date on which they are made.

(4)

For the purposes of sub-section (3) of section 34, every limited liability partnership shall file the Statement of Account and Solvency in Form 8 with the Registrar, within a period of thirty days from the end of six months of the financial year to which the Statement of Account and Solvency relates.

(5)

The fees to be paid to the Registrar in pursuance of sub-section (3) of section 34 for filing the Statement of Account and Solvency shall be as mentioned in Annexure 'A'.

(6)

A limited liability partnership's Statement of Account and Solvency shall be signed on behalf of the limited liability partnership by its designated partners.

(7)

The Statement of Account and Solvency of a limited liability partnership shall be signed by the designated partners of the LLP and each designated partner shall be taken to be a party to its approval unless he shows that he took all reasonable steps to prevent their being approved and signed.

(8)

The accounts of every limited liability partnership shall be audited in accordance with these rules:

Provided that a limited liability partnership whose turnover does not exceed, in any financial year, forty lakh rupees, or whose contribution does not exceed twenty-five lakh rupees shall not be required to get its accounts audited:

Provided further that if partners of such limited liability partnership decide to get the accounts of such LLP audited, the accounts shall be audited in accordance with these rules:

Provided also that where the partners of such LLP do not decide for audit of the accounts of the LLP, such LLP shall include in the Statement of Account and Solvency a statement by the partners to the effect that the partners acknowledge their responsibilities for complying with the requirements of the Act and the Rules with respect to preparation of books of account and a certificate in the form specified in Form 8.

(9)

A person shall not be qualified for appointment as an auditor of a limited liability partnership unless he is a Chartered Accountant in practice.

(10)

An auditor or auditors of a limited liability partnership shall be appointed for each financial year of the LLP for auditing its accounts.

(11)

The designated partners may appoint an auditor or auditors-

(a)

at any time for the first financial year but before the end of the first financial year,

(b)

at least 30 days prior to the end of the each financial year (other than the first financial year),

(c)

to fill a casual vacancy in the office of auditor, including in the case when the turnover or contribution of a limited liability partnership exceeds the limits specified under sub-rule (8), or

(d)

to fill up the vacancy caused by removal of an auditor.

(12)

The partners may appoint an auditor or auditors where the designated partners have power to appoint under sub-rule (11) and have failed to appoint.

(13)

An auditor or auditors of an LLP shall hold office in accordance with the terms of his or their appointment and shall continue to hold such office till the period-

(a)

the new auditors are appointed, or

(b)

they are re-appointed.

(14)

Where no auditor has been appointed under sub-rule (11), any auditor in office shall be deemed to be re-appointed, unless-

(a)

the limited liability partnership agreement requires actual re-appointment, or

(b)

the majority of partners have determined that he should not be re-appointed and have given a notice to this effect to the LLP.

(15)

Provisions of sub-rule (14) shall be applicable without prejudice to the provisions of the rules relating to removal and resignation of auditors under this chapter.

(16)

A notice specified under clause (b) of sub-rule 14-

(a)

may be in hard copy or electronic form, and

(b)

must be authenticated by the person or persons giving it.

(17)

The remuneration of an auditor appointed by the limited liability partnership may be fixed by the designated partners or by following the procedure as laid down in the limited liability partnership agreement.

(18)

(a)

The partners of a limited liability partnership may remove an auditor from office at any time by following the procedure as laid down in the limited liability partnership agreement.

(b)

Where the limited liability partnership agreement does not provide for removal of an auditor, consent of all the partners shall be required for removal of the auditor from his office.

(19)

(a)

An auditor of an LLP may resign his office by depositing a notice in writing to that effect at the LLP's registered office.

(b)

Where an auditor is unwilling to be re-appointed, he shall give a notice in writing to that effect at the LLP's registered office, not less than 14 days before the end of the time allowed for appointing the new auditor.

(c)

The notice under clause (a) or (b) is not effective unless it is accompanied by the statement of the circumstances connected with his ceasing to hold office.

(d)

The auditor's term comes to an end as on the date on which the notice is deposited or on such later date as may be specified in the notice.

25.

(1)

For the purposes of sub-section (1) of section 35, every limited liability partnership shall file an annual return with the Registrar in Form 11.

(2)

The annual return of an LLP having turnover upto five crore rupees during the corresponding financial year or contribution upto fifty lakh rupees shall be accompanied with a certificate from a designated partner, other than the signatory to the annual return, to the effect that annual return contains true and correct information. In all other cases, the annual return shall be accompanied with a certificate from a Company Secretary in practice to the effect that he has verified the particulars from the books and records of the limited liability partnership and found them to be true and correct.

(3)

The fees to be paid to the Registrar in pursuance of sub-section (1) of section 35 for filing the annual return shall be as mentioned in Annexure "A".

26.

The documents to be kept by the Registrar under section 36 shall be available in the registry on payment of fee as mentioned in Annexure "A" for inspection by any person and for obtaining any certified copy thereof.

Chapter VIII

Destruction Of Old Records

27.

(1)

The Registrar shall preserve the documents permanently as specified in Annexure "B" to these rules.

(2)

Subject to previous order of the Registrar, the records in the office of Registrar may be destroyed after the expiry of the period of their preservation as specified below:-

(a)

Records to be preserved for 21 years:

All papers, registers, refund orders and correspondence relating to the limited liability partnership liquidation accounts.

(b)

Records to be preserved for 5 years:

(i)

copies of Government orders relating to limited liability partnership;

(ii)

registered documents of limited liability partnership which have been fully wound up and finally dissolved together with correspondence relating to such limited liability partnership;

(iii)

papers relating to legal proceedings from the date of disposal of the case and appeal, if any;

(iv)

copies of statistical returns furnished to Government;

(v)

all correspondences including correspondences relating to scrutiny of accounts, annual returns, prosecutions, reports to the Central Government and the Tribunal and the correspondences relating to complaints:

Provided that in case of prosecution matter, the date is to be recorded from the date of disposal of the case and appeal, if any.

(c)

Records to be preserved for three years-

(i)

All books, records and papers, other than those specified in sub-rule (1), clauses (a) and (b) of sub-rule (2), sub-rule (3) and sub-rule (4).

(ii)

Routine correspondence regarding payment of fees, additional filing fees and correspondence about the return of documents.

(3)

The registered documents specified in Annexure "C" to these rules relating to any limited liability partnership in operation shall be preserved for the period indicated against them in the said Annexure.

(4)

Registered documents of foreign limited liability partnerships which cease to have any place of business in India shall be destroyed after expiry of three years from the date such limited liability partnerships cease to have any place of business in India.

(5)

The Registrar shall maintain a Register of destroyed documents in two parts, in the form set out in the Annexure "D" to these rules, wherein he shall enter brief particulars of the records destroyed and shall certify therein the date and mode of destruction.

(6)

The provisions of these rules shall be in addition to and not in derogation of the rules for the destruction of office records connected with accounts (containing in Appendix 13 to the Compilation of the General Financial Rules) and the period prescribed under Record Retention Schedule for Records common to all departments and such other rules.

Chapter IX

Investigations

28.

For the purposes of clause (a) of sub-section (3) of section 43, an application by the partners to investigate into the affairs of the limited liability partnership, shall be made, along with such security, for an amount calculated on the following scale but not exceeding twenty five lakh rupees, for payment of costs of the investigation:

Turnover (Rs)

Amount of Security

[as stated in the Statement of Account of Solvency for the immediately preceding financial year]

(i) Upto 1 Crore

2 Lakh

(ii) 1 Crore or more but less than 5 crore

5 Lakh

(iii) 5 Crore or more but less than 10 crore

10 Lakh

(iv) 10 Crore or more

25 Lakh

Explanation .-In the absence of Statement of Account and Solvency for the preceding financial year, such amount of security as may be fixed by the Central Government.

29.

For the purposes of section 44, an application by the partners under clause (a) of sub section (1) of section 43 to investigate the affairs of the limited liability partnership, shall be made alongwith the deposit of such security as calculated in the manner specified in rule 28.

30.

The fee payable for furnishing a copy of the Inspector's report in pursuance of clause (b), sub section (2), section 49 shall be five rupees per page or fractional part thereof.

31.

For the purposes of section 54, a copy of the report of any inspector or inspectors, shall be authenticated either-

(a)

by the common seal, if any, of the limited liability partnership whose affairs have been investigated into; or

(b)

by a certificate of a public officer having the custody of the report, under and in accordance with the provisions of section 76 of the Indian Evidence Act, 1872 (

1 of 1872

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Chapter X

Conversion To Limited Liability Partnership

32.

(1)

The Registrar shall, on conversion of a firm, private company or an unlisted public company into limited liability partnership, issue a Certificate of Registration under his seal in Form 19.

(2)

In the event, Registrar has refused the registration, the applicant firm or private company or unlisted public company, as the case may be, may apply to the Tribunal within sixty days from the date of receipt of such intimation of refusal:

[Provided that until the Tribunal is constituted under the Companies Act, 1956, the application under this sub-rule may be made to the company Law Board.]

[Inserted by G.S.R. 385(E), dated 4.6.2009 (w.e.f. 4.6.2009).]

33.

[For the purposes of the proviso to sub-section (1) of section 58 of the Act, where the firm has been converted into limited liability partnership, an intimation of such conversion to the concerned Registrar of Firms shall be given in Form 14 within fifteen days of the date of registration of the Limited Liability Partnership.]

[Substituted by Notification No. G.S.R. 786(E), dated 15.10.2015 (w.e.f. 1.4.2009).]

Chapter XI

Foreign Limited Liability Partnership

34.

(1)

A foreign limited liability partnership shall, within thirty days of establishing a place of business in India, file with the Registrar in Form 27-

(a)

a copy of the certificate of incorporation or registration and other instrument(s) constituting or defining the constitution of the limited liability partnership;

(b)

the full address of the registered or principal office of the limited liability partnership in the country of its incorporation;

(c)

the full address of the office of the limited liability partnership in India which is to be deemed as its principal place of business in India; and

(d)

list of partners and designated partners, if any, and the names and addresses of two or more persons resident in India, authorised to accept on behalf of the limited liability partnership, service of process and any notices or other documents required to be served on the limited liability partnership.

(2)

(i)

If the limited liability partnership is incorporated in any country which is a part of the Commonwealth, the copies of the documents referred to in sub-rule (1) shall be certified as true copies-

(a)

by an official of the Government to whose custody the original is committed; or

(b)

by a Notary (Public) in that Part of the Commonwealth; or

(c)

by an officer of the limited liability partnership, on oath before a person having authority to administer an oath in that part of the Commonwealth.

(ii)

If the Limited Liability Partnership is incorporated in a country that falls outside the Commonwealth but is a party to the Hague Apostille Convention, 1961-

(a)

the copies of the documents referred to in sub-rule (1) shall be certified by an official of the Government to whose custody the original is committed and be duly apostilled in accordance with Hague Convention;

(b)

a list of the partners and designated partners of the LLP, if any, the name and address of persons resident in India, authorised to accept notice on behalf of the Limited Liability Partnership shall be duly notarised and be apostilled in the country of their origin in accordance with Hague Convention.

(iii)

If the limited liability partnership is incorporated in a country outside the Commonwealth and is not a party to the Hague Convention, the copy of the incorporation documents referred in sub-rule (1) shall be certified-

(a)

by an official of the Government to whose custody the original is committed; or

(b)

a Notary (Public) of such country; or

(c)

by an officer of the limited liability partnership.

(iv)

The signature or seal of the official referred to in sub-clause (a) of clause (iii) or the certificate of the Notary (Public) referred to in sub-clause (b) of that clause shall be authenticated by a Diplomatic or Consular Officer empowered in this behalf under section 3 of the Diplomatic and Consular Officers (Oaths and Fees) Act, 1948 (40 of 1948), or where there is no such officer, by any of the officials mentioned in section 6 of the Commissioners of Oaths Act, 1889 (52 and 53 Vic. C. 10), or in any Act amending the same.

(v)

The certificate of the officer of the limited liability partnership referred to in sub-clause (c) of clause (iii) shall be signed before a person having authority to administer an oath as provided under section 3 of the Diplomatic and Consular Officers (Oaths and Fees) Act, 1948 (40 of 1948), or as the case may be, by section 3 of the Commissioners of Oaths Act, 1889 (52 and 53 Vic. C. 10) the status of the person administering the oath in the latter case being authenticated by any official specified in section 6 of the Commissioners of Oaths Act, 1889 (52 and 53 Vic. C. 10) or in any Act amending the same.

(3)

(i)

If any alteration is made or occurs in-

(a)

the instrument constituting or defining the constitution of a limited liability partnership incorporated or registered outside India;

(b)

the registered or principal office of a limited liability partnership incorporated or registered outside India; or

(c)

the partner or designated partner, if any, of a limited liability partnership incorporated or registered outside India, the foreign limited liability partnership shall file in Form 28 such alterations with the Registrar within sixty days of the close of the financial year.

(ii)

If any alteration is made or occurs in-

(a)

the certificate of incorporation or registration of limited liability partnership incorporated or registered outside India;

(b)

the name or address of any of the persons authorised to accept service on behalf of a foreign limited liability partnership in India; or

(c)

the principal place of business of foreign limited liability partnership in India, the foreign limited liability partnership shall file in Form 29 such alterations with the Registrar within thirty days from the date on which the alteration was made or occurred.

(4)

Every foreign limited liability partnership shall file with the Registrar the Statement of Account and Solvency in Form 8 in

accordance with provisions of rule 24 duly signed by the authorised representatives within a period of 30 days from the end of six months of the financial year.

(5)

(i)

If any document as is mentioned in sub-rule (1) or (3) is not in the English language, there shall be annexed to it a certified translation thereof.

(ii)

The translation of documents into English required to be filed with the Registrar in pursuance of sub-rule (1) or (3) shall be certified to be correct in the manner as provided in clause (iii) or clause (iv) of this sub-rule, as the case may be.

(iii)

Where any translation is made outside India, it shall be authenticated in the manner specified in sub-rule (2).

(iv)

Where such translation is made within India, it shall be authenticated-

(a)

by an Advocate, Chartered Accountant, Company Secretary or Cost Accountant; or

(b)

by an affidavit of a person who, in the opinion of the Registrar has adequate knowledge of the language of the original and of English.

(6)

Every foreign limited liability partnership shall cause the name of the foreign limited liability partnership and of the country in which the limited liability partnership is incorporated, to be stated in legible English characters in all invoices, official correspondence and publications of the limited liability partnership.

(7)

(a)

Where any such limited liability partnership makes default in delivering to the Registrar the names and addresses of persons resident in India who are authorised to accept on behalf of the limited liability partnership service of process, notices or other documents; or

(b)

if at any time all the persons whose names and addresses have been so delivered are dead or have ceased so to reside, or refuse to accept service on behalf of the limited liability partnership or for any reason, cannot be served, a document may be served on the limited liability partnership by leaving it at, or sending it by post to, any place of business established by the limited liability partnership in India.

(8)

If any foreign limited liability partnership ceases to have a place of business in India, it shall give notice to the Registrar in Form 29 within 30 days of its intention to close the place of business and as from the date on which notice is so given, the obligation of the limited liability partnership to file any document to the Registrar shall cease, provided it has no other place of business in India and it has filed all the documents due for filing as on the date of the notice.

(9)

Every document which is required to be filed by any foreign limited liability partnership shall be filed in the electronic form to the Registrar having jurisdiction over New Delhi, through the portal maintained by the Ministry of Corporate Affairs on its website www.mca.gov.in.

(10)

The Registrar shall, on registration of Form 27, issue a certificate for establishment of place of business in India by the foreign limited liability partnership in Form 30.

(11)

There shall be paid to Registrar for filing or delivery or registering any form or document required by this Chapter the fee as mentioned in Annexure "A".

Chapter XII

Compromise, Arrangement Or Reconstruction Of Limited Liability Partnerships

35.

(1)

An application under sub-section (1) of section 60 for an order convening a meeting of creditors or partners or creditors and partners shall be supported by an affidavit. A copy of the proposed compromise or arrangement shall be annexed to the affidavit as an exhibit thereto. The affidavit in support thereof shall be in Form 20.

(2)

Where the limited liability partnership is not the applicant, a copy of the summons and of the affidavit shall be served on the limited liability partnership, or, where the limited liability partnership is being wound-up, on its liquidator, not less than 14 days before the date fixed for the hearing of the summons. The summons shall be in Form 21.

(3)

(a)

Upon the hearing of the summons or any adjourned hearing thereof, the Tribunal shall, by order, unless it thinks fit for any reason to dismiss the summons, give such directions as it may think necessary in respect of the following matters:

(i)

determining the creditors and/or of partners whose meeting or meetings have to be held for considering the proposed compromise or arrangement;

(ii)

fixing the time and place of such meeting or meetings;

(iii)

appointing a chairman for the meeting or chairman for the meetings to be held;

(iv)

fixing the quorum and the procedure to be followed at the meeting or meetings, including voting by proxy;

(v)

determining the values of the creditors and/or the partners, as the case may be, whose meetings have to be held;

(vi)

notice to be given of the meeting or meetings and the advertisement, if any, of such notice;

(vii)

the time within which the chairman of the meeting is to report to the Tribunal the result of the meeting; and

(viii)

such other matters as the Tribunal may deem necessary.

(b)

The order made under clause (a) shall be in accordance with the rules as may be laid down in this behalf.

(4)

(i)

Voting by proxy shall be permitted, provided a proxy in Form 26 duly signed by the person entitled to attend and vote at the meeting is filed with the limited liability partnership at its registered office not later than 48 hours before the meeting.

(ii)

Where a body corporate which is a partner or creditor of a limited liability partnership, authorises any person to act as its representative at the meeting of the partners or creditors of the limited liability partnership, as the case may be, a copy of the authorisation of such person to act as its representative at the meeting, and certified to be a true copy by a designated partner or other authorised officer of such body corporate, shall be lodged with the limited liability partnership at its registered office not later than 48 hours before the meeting.

(5)

The notice of the meeting to be given to the creditors and/or partners, shall be in accordance with the rule laid down in this behalf, and shall be sent to them individually by the chairman appointed for the meeting, or, if the Tribunal so directs, by the limited liability partnership (or its Liquidator), or any other person as the Tribunal may direct, by post under certificate of posting to their last known address not less than 21 clear days before the date fixed for the meeting. It shall be accompanied by a copy of the proposed compromise or arrangement alongwith statement showing material interest of the designated partners, if any, and a form of proxy.

(6)

The notice of the meeting shall be advertised, if so decided by the Tribunal, in such newspapers and in such manner as the Tribunal may direct.

(7)

Every creditor or partner entitled to attend the meeting shall be furnished by the limited liability partnership, free of charge and within 48 hours of a requisition made for the same, with a copy of the proposed compromise or arrangement.

(8)

The chairman appointed for the meeting or the limited liability partnership or other person directed to issue the advertisement and the notices of the meeting shall file an affidavit not less than 7 days before the date fixed for the holding of the meeting or the holding of the first of the meetings, as the case may be, showing that the directions regarding the issue of notices and the advertisement have been duly complied with. In default thereof, the summons shall be posted before the Tribunal for such orders as it may think fit to make.

(9)

The chairman of the meeting, or where there are separate meetings, the chairman of each meeting shall, within the time fixed by the Tribunal, or where no time has been fixed, within seven days after the conclusion of the meeting, report the result thereof to the Tribunal. The report shall state accurately the number of creditors or the partners, as the case may be, who were present and who voted at the meeting either in person or by proxy, their individual values and the way they voted.

(10)

(i)

Where the proposed compromise or arrangement is agreed to, with or without modification, as provided in sub-section (2) of section 60, the limited liability partnership, or its Liquidator, as the case may be, shall, within seven days of the filing of the report by the chairman, present a petition to the Tribunal for confirmation of the compromise or arrangement: Provided that where a compromise or arrangement is proposed for the purposes of, or in connection with, a scheme for the reconstruction of any limited liability partnership or the amalgamation of any two or more limited liability partnerships, the petitioner shall pray for appropriate orders and directions under section 62.

(ii)

Where the limited liability partnership fails to present the petition under clause (i) for confirmation of the compromise or arrangement as aforesaid, it shall be open to any creditor or partner as the case may be, with the leave of the Tribunal, to present the petition for confirmation and the limited liability partnership shall be liable for the costs thereof.

(iii)

Where no petition for confirmation of the compromise or arrangement is presented to, or where the compromise or arrangement has not been approved by the requisite majority under sub-section (2) of section 60 and consequently no petition for confirmation could be presented, the report of the chairman as to the result of the meeting made under sub-rule (9) shall be placed for consideration before the Tribunal for such orders as may be necessary.

(11)

An order made by the Tribunal as mentioned in sub-section (3) of section 60 and sub-section (3) of section 62 shall be filed with Registrar concerned in Form 22 along with fee as mentioned in Annexure "A".

Explanation .-In computing the period of 30 days from the date of order, the requisite time for obtaining a certified copy of order shall be excluded.

(12)

(i)

An arrangement for revival and rehabilitation of any LLP may be proposed,-

(a)

where on a demand by the creditors of the LLP representing fifty per cent or more of its outstanding amount of debt the LLP has failed to pay the debt, within thirty days of the service of the notice of demand or to secure or compound it to the reasonable satisfaction of the creditors; or

(b)

where a petition for winding up of a LLP is pending before the Tribunal, in terms of the directions given by the Tribunal on the winding up petition; or

(c)

where the liquidator has filed his report before the Tribunal, in terms of directions given by the Tribunal on the report of the Liquidator.

(ii)

Without prejudice to clause (i), the LLP or any creditor or partner of the LLP, or in the case of a LLP which is being wound up, the Liquidator, may make an application for sanction of the arrangement for revival and rehabilitation before the Tribunal.

(13)

(i)

An application under sub-rule (12) shall be accompanied by-

(a)

a statement of account and solvency of LLP for the immediately preceding financial year, in case the application under sub-rule (12) is made by the LLP;

(b)

particulars and documents relevant to the scheme including commitments whether financial or otherwise expected from various parties or, proposed restructuring or rescheduling of the debts, or any undertaking or understanding, in case from bank or financial institution through a letter or in any other case through an affidavit of concerned party or parties, or in any other form as may be directed by the Tribunal; and

(c)

proposed scheme of revival and rehabilitation of the LLP including proposal for appointment of an LLP Administrator.

(ii)

An application under sub-rule (12) shall be made to the Tribunal within 90 days from the date of expiry of demand notice or from the date of the direction of the Tribunal referred to under clause (i) of sub-rule 12.

(14)

(a)

Within 60 days of receipt of an application under sub-rule (12), the Tribunal may hear all the parties concerned and admit or dismiss the application;

(b)

where the Tribunal admits the application, it may make an order to that effect and make provisions in such order, for all or any of the following matters:-

(i)

holding of meetings of the creditors for approval of scheme proposed for revival and rehabilitation of LLP;

(ii)

procedure to be followed by the LLP Administrator proposed in the scheme in connection with holding of the meeting including the appointment of chairman for such meeting;

(iii)

any other direction(s) or order(s) as may be considered necessary.

(c)

The LLP Administrator proposed in the scheme shall submit his preliminary report including the decision of the meeting to the Tribunal within 60 days of order made under clause (b) of sub-rule (14).

(15)

(i)

On consideration of the report of the LLP Administrator under clause (c) of sub-rule (14), and other materials available, if the Tribunal is satisfied that the creditors representing three-fourths in value of the amount outstanding against that LLP have, with or without modification of the scheme, resolved that it is not possible to revive and rehabilitate the LLP, the Tribunal may, within 60 days of the receipt of such report, order-

(a)

that the proceedings for the winding up of the LLP be initiated; or

(b)

the LLP be wound up, or the liquidator to continue; or

(c)

sanction the arrangement for revival and rehabilitation of LLP as approved by such creditors with such modifications as may be considered necessary by the Tribunal, and make orders for continuation of the LLP Administrator or appointment of a new LLP Administrator:

Provided that Tribunal may consider for its approval, the arrangement for revival and rehabilitation including the proposal

for appointment of any other LLP Administrator moved by the LLP in the meeting of the creditors, in place of the arrangement proposed by the creditors or the Liquidator, provided the arrangement is approved by three-fourth majority, in value, of creditors.

Provided further that where the arrangement of revival and rehabilitation relates to amalgamation of the LLP with any other LLP, no such scheme shall be sanctioned by the Tribunal unless the said scheme is approved with, or without modification by three-fourth majority of respective partners of transferor and transferee LLPs.

(ii)

The order of sanction of the arrangement by the Tribunal under clause (i) may make provisions, for all or any of the following matters:-

(a)

powers and functions of the LLP Administrator;

(b)

the time period within which various actions proposed in the arrangement to be completed;

(c)

any such direction to the LLP or its officers or to the creditors, or to the LLP Administrator or to any other person, as may be considered necessary, for the purpose of implementation of the arrangement of revival and rehabilitation; and

(d)

any other order or orders as may be considered necessary.

(16)

The LLP Administrator shall complete all the actions relating to implementation of the revival and rehabilitation arrangement and submit his final report before the Tribunal within such time directed by the Tribunal but not exceeding 180 days of the order under clause (i) of sub-rule (15);

(17)

(i)

The LLP administrator shall be appointed from a panel maintained by the Central Government for winding up and dissolution of LLPs.

(ii)

The terms and conditions of the appointment including fee of LLP Administrator shall be such as may be ordered by the Tribunal.

(iii)

The Tribunal may, on a reasonable cause being shown and for reasons to be recorded in writing, remove the LLP Administrator and may appoint another LLP Administrator.

(iv)

In case of removal, death or incapacity of the LLP Administrator, the Tribunal may appoint another LLP Administrator.

(v)

The LLP administrator shall, within 30 days of the making of order or orders under sub-rule (15) cause certified copy thereof to be filed with the Registrar concerned in Form 22 along with fee as mentioned in Annexure "A".

Explanation .-In computing the period of 30 days from the date of order, the requisite time for obtaining a certified copy of order shall be excluded.

Chapter XIII

Electronic Filing Of Documents

36.

(1)

(i)

Every form or application or document or declaration required to be filed or delivered under the Act and rules made thereunder, shall be filed in computer readable electronic form, in portable document format (pdf) to the Registrar through the portal maintained by the Ministry of Corporate Affairs on its web-site www.mca.gov.in or through any other website approved by the Central Government and authenticated by a partner or designated partner of the limited liability partnership for such purpose by the use of a valid digital signature:

Provided that where documents are required to be filed on Non-Judicial Stamp Paper, the LLP shall submit such documents in the physical form, in addition to their submission in electronic form, unless the Central Government, by an

order, does not require submission in physical form.

(ii)

Every designated partner, partner or person specified in the Act for authentication of e-form, documents or application, etc., which are required to be filed or delivered under the Act or rules made thereunder, shall obtain a digital signature certificate from the Certifying Authority for the purpose of such authentication and such certificate shall not be valid unless it is of Class II or Class III specification under the Information Technology Act, 2000.

(2)

The Central Government shall set up and maintain-

(i)

a website or portal to provide access to the electronic registry; and,

(ii)

as many Registrar's Front Offices as may be necessary and at such places and for such time as Central Government may determine from time to time, for filing of e-Forms, documents and applications, etc., viewing and inspection of documents in the electronic registry.

(3)

(i)

The Central Government shall set up and maintain a secure electronic registry in which all the documents filed electronically shall be stored. The electronic registry so set up shall enable public access and inspection of such documents as are required to be in the public domain under the Act on payment of the fees as mentioned in Annexure "A".

(ii)

Every document or application or certificate or notice, etc., required to be signed by the Registrar or an officer of the Central Government under the Act or rules made thereunder, shall be authenticated through a valid digital signature of such person or a system generated digital signature.

(iii)

The Registrar or an officer of the Central Government, as the case may be, may send any communication either to the Limited Liability Partnership or its authorised representative, partners or both in the electronic manner for which the LLP shall create and maintain at all times a valid electronic address (e.g., E-mail, user Identification, etc.) capable of receiving and acknowledging the receipt of such communication, automated or otherwise.

(4)

The Registrar or an officer of the Central Government shall issue certificate, receipt, approval or communicate endorsement or acknowledgment in the electronic manner:

Provided that where the Registrar or an officer of the Central Government, as the case may be, is not able to issue any certificate, receipt, endorsement, acknowledgment or approval in electronic manner for the reasons to be recorded in writing, he may issue such certificate, receipt, or communicate endorsement, acknowledgment or approval in the physical form under manual signature affixing seal of his office.

(5)

The Registrar shall examine or cause to be examined every application or e-Form or document required or authorised to be filed by or delivered under the Act and rules made thereunder for approval, registration, taking on record or rectification by the Registrar as the case may be:

Provided that the e-Forms or documents identified as informatory in nature and filed under Straight Through Process (STP) may be examined by the Registrar any time after its filing.

(6)

Where the Registrar, on examining any application or e-Form or document referred to in sub-rule (5), finds it necessary to call further information or finds such application or e-Form or document to be defective or incomplete in any respect, he shall give intimation of such information called for or defects or incompleteness noticed electronically, by placing it on the website and also by e-mail on the last intimated e-mail address of the person or the limited liability partnership, which has filed such application or e-Form or document, directing him or it to furnish such information or to rectify such defects or incompleteness or to re-submit such application or e-Form or document within the period allowed under sub-rule (7):

Provided that in case the e-mail address of the person or the Limited Liability Partnership in question is not available,

such intimation shall be given by the Registrar by post at the last intimated address given in Form 12, or registered office address of the Limited Liability Partnership or the address of such person, as the case may be. The Registrar shall preserve the facts of such intimation in the electronic record.

(7)

The Registrar shall allow such period or periods but not exceeding thirty days in aggregate to such person or LLP which has filed such application or e-Form or document under sub-rule (5) for furnishing further information or for rectification of the defects or incompleteness or for re-submission of such application or e-Form or document.

(8)

In case where such further information called for has not been provided or has been furnished partially or has not been provided or defects or incompleteness has not been rectified or has been rectified partially or has not been rectified to the satisfaction of the Registrar within the period allowed under sub-rule (7), the Registrar shall either reject or treat and label such application or e-Form or document as the case may be as "invalid" in the electronic record, and shall not take on record such invalid application or e-Form or document and shall inform such person or limited liability partnership as the case may be in the manner specified in sub-rule (6) .

(9)

Where any document has been recorded as invalid by the Registrar, such document may be rectified by the limited liability partnership only through fresh filing with payment of fee and additional fee as applicable, without prejudice to any other liability under the Act.

(10)

Save as otherwise provided in the Act, the Registrar shall not keep any document pending for approval and registration or for taking on record or for rejection or otherwise for more than one hundred twenty days, from the date of its filing.

(11)

The Registrar in case finds any e-Form or document filed under Straight Through Process (STP), referred to in proviso under sub-rule (5), as defective or incomplete in any respect, at any time, he shall treat and label such e-Form or document as "defective" in the electronic registry and shall also issue a notice pointing out such defects or incompleteness in such e-Form or document at the last intimated e-mail address (if available) of the person or the LLP which has filed the document and also in writing by post at the address of such person or address of such LLP or registered office address of LLP, calling upon such person or LLP to file such e-Form or document afresh with fee and additional fee as applicable, after rectifying such defects or incompleteness within a period of thirty days from the date of such notice.

Chapter XIV

Striking Off Name Of Defunct Llp

37.

(1)

Where a limited liability partnership is not carrying on any business or operation-

(a)

for a period of two years or more and the Registrar has reasonable cause to believe the same, for the purpose of taking suo motu action for striking off the name of the LLP; or

(b)

for a period of one year or more and has made an application in Form 24 to the Registrar, with the consent of all partners of the limited liability partnership for striking off its name from the register, the Registrar shall send a notice to the limited liability partnership and all its partners, of his intention to strike off the name of the limited liability partnership from the register and requesting them to send their representations along with copies of the relevant documents, if any, within a period of one month from the date of the notice:

Provided that no such notice by Registrar shall be required under clause (b):

Provided further that where the limited liability partnership is regulated under a special law, the application for removal of its name shall be accompanied by approval of the regulatory body constituted or established under that law.

(1A)

[The limited liability partnership referred to in clause (b) of sub-rule (1) of rule 37 shall,-

(i)

file overdue returns in Form 8 and Form 11 up to the end of the financial year in which the limited liability partnership

ceased to carry on its business or commercial operations before filing Form 24;

(II)

enclose along with Form 24,-

(a)

a statement of account disclosing nil assets and nil liabilities, certified by a Chartered Accountant in practice made up to a date not earlier than thirty days of the date of filing of Form 24;

(b)

an affidavit signed by the designated partners, either jointly or severally, to the effect,-

(i)

that the Limited Liability Partnership has not commenced business or where it commenced business, it ceased to carry on such business from(dd/mm/yyyy);

(ii)

that the limited liability partnership has no liabilities and indemnifying any liability that may arise even after striking off its name from the Register;

(iii)

that the Limited Liability Partnership has not opened any Bank Account and where it had opened, the said bank account has since been closed together with certificate(s) or statement from the respective bank demonstrating closure of Bank Account;

(iv)

that the Limited Liability Partnership has not filed any Income-tax return where it has not carried on any business since its incorporation, if applicable.

(c)

a copy of the acknowledgment of the latest Income-tax return filed under the Income-tax Act, 1961 (43 of 1961) and the rules made thereunder for the time being in force, where the limited liability partnership has carried out any business and has filed such return.

(d)

copy of the initial limited liability partnership agreement, if entered into and not filed, along with changes thereof in cases where the Limited Liability Partnership has not commenced business or commercial operations since its incorporation.

Explanation. - The date of cessation of commercial operation is the date from which the Limited Liability Partnership ceased to carry on its revenue generating business and the transactions such as receipt of money from debtors or payment of money to creditors, subsequent to such cessation will not form part of revenue generating business.]

[Inserted by Notification No. G.S.R. 470(E), dated 16.5.2017 (w.e.f. 1.4.2009).]

(2)

A notice issued under sub-rule (1) or contents of an application made by the LLP shall also be placed on the website of the Ministry of Corporate Affairs for the information of the general public for a period of one month.

(3)

At the expiry of the time mentioned in the notice under sub-rule (1), or one month under sub-rule (2) above, the Registrar may, by an order, unless cause to the contrary is shown by the limited liability partnership, or the Registrar is satisfied that the name should not be struck off from the register, strike its name off the register, and shall publish notice thereof in the Official Gazette, and on the publication in the Official Gazette of this notice, the limited liability partnership shall stand dissolved.

(4)

The Registrar, before passing an order under sub-rule (3), shall, where he has sufficient cause to believe that the limited liability partnership has any asset or liability, satisfy himself that sufficient provision has been made for the realisation of all amount due to the limited liability partnership and for the payment or discharge of its liabilities and obligations by the limited liability partnership within a reasonable time and, if necessary, obtain necessary undertakings from the designated partner or partner or other persons in charge of the management of the limited liability partnership:

Provided that notwithstanding the undertakings referred to in this sub-rule, the assets of the limited liability partnership shall be made available for the payment or discharge of all its liabilities and obligations even after the date of the order removing the name of the limited liability partnership from the register.

(5)

The liability, if any, of every designated partner of the limited liability partnership dissolved under sub-rule (3), shall continue and may be enforced as if the limited liability partnership had not been dissolved.

(6)

Nothing in this rule shall affect the power of the Tribunal to wind up a limited liability partnership the name of which has been struck off the register.

Explanation .-In computing the period of 30 days from the date of order, the requisite time for obtaining a certified copy of order shall be excluded.

Chapter XV

Conversion From Firm To Limited Liability Partnership

38.

(1)

For the purposes of the Second Schedule, an application shall be made in the format provided in Part A of Form 17 together with the statement of partners in format provided in Part B of Form 17 alongwith the fee as mentioned in Annexure "A".

(2)

The Registrar shall, on conversion of the firm into the limited liability partnership shall issue a certificate of registration under his seal in Form 19.

(3)

For the purposes of para 5 of the Second Schedule, the limited liability partnership shall inform the concerned Registrar of firms about conversion of firm into limited liability partnership in Form 14.

Chapter XVI

Conversion From Private Company To Limited Liability Partnership

39.

(1)

For the purposes of the Third Schedule, an application shall be made in the format provided in Part A of Form 18 together with the statement of shareholders in format provided in Part B of Form 18 alongwith the fee as mentioned in Annexure "A".

(2)

The Registrar shall, on conversion of any private company into limited liability partnership shall issue a certificate of registration under his seal in Form 19.

[* * *]

[Deleted '(3) For the purposes of para 4 of the Third Schedule, the limited liability partnership shall inform the concerned Registrar of Companies about conversion of private company into limited liability partnership in Form 14.' by Notification No. G.S.R. 786(E), dated 15.10.2015 (w.e.f. 1.4.2009).]

Chapter XVII

Conversion From Unlisted Public Company To Limited Liability Partnership

40.

(1)

For the purposes of the Fourth Schedule, an application shall be made in the format provided in Part A of Form 18 together with the statement of shareholders in format provided in Part B of Form 18 alongwith the fee as mentioned in Annexure "A".

(2)

The Registrar shall, on conversion of any unlisted public company into limited liability partnership shall issue a certificate of registration under his seal in Form 19.

(3)

For the purposes of para 5 of the Fourth Schedule, the limited liability partnership shall inform the concerned Registrar of Companies about conversion of unlisted public company into limited liability partnership in Form 14.

Chapter XVIII

Compounding Of Offences

41.

(1)

Every application for the compounding of an offence shall be made in Form 31 to the Registrar who shall forward the same, together with his comments thereon, to the Central Government.

(2)

Where any offence is compounded before the institution of any prosecution, no prosecution shall be instituted in relation to such offence, against the offender in relation to whom the offence is so compounded.

[* * *]

[Deleted '(3) Where the composition of any offence is made after the institution of any prosecution, such composition shall be brought by the Registrar in writing, to the notice of the Court in which the prosecution is pending.' by Notification No. G.S.R. 786(E), dated 15.10.2015 (w.e.f. 1.4.2009).]

(4)

Where any offence is compounded under section 39, whether before or after the institution of any prosecution, intimation thereof shall be given by the LLP to the Registrar in Form 22 within seven days from the date on which the offence is so compounded.

(5)

The Central Government while dealing with an application for the compounding of the offence for a default in compliance with any provision of the Act which requires a LLP or its partner or partners or designated partner or designated partners to file or register with, or send to, the Registrar any return, statement of account and solvency or other document, may, if it thinks fit to do so, direct, before allowing compounding under this rule, by order, any partner or designated partner of the LLP to file or register with, or on payment of the fee, and the additional fee, required to be paid under section 69, such return, statement of account and solvency or other document within such time as may be specified in the order.

[Form-1]

[Substituted 'Form-1 and Form-2' by Notification No. S.O. 896(E), dated 18.9.2018 (w.e.f. 1.4.2009)]

RUN-LLP

{

RUN-LLPReserve Unique Name-LLP

Service Request Number:

Dated:

LLP details

New RequestResubmission

SCR

{

|

|

|

|

}

New Incorporation / Conversion

{

?

|

|

|

}

CIN

{

|

|

|

}

LLPIN

{

|

```

|
|
|}
Proposed Name 1
{|
|
|}
Proposed Name 2
{|
|
|}
Comments
{|
No file chosenOnce you have submitted the name reservation request it will then be checked and, if found feasible,
approved by the Central Registration Centre (CRC). You will receive an email from the CRC advising the outcome of the
name reservation request.
|
|}
{|
[Pursuant to rule 8 and rule 11 and rule18 of Limited LiabilityPartnership Rules, 2009]
FiLLiP(Form for incorporation of LimitedLiability Partnership)
Note - All fields marked in *are to be mandatorily filled.
Part A: Incorporation document
*Whether name is already approved by Registrar of CompaniesYesNo
1.| Service Request Number (SRN) ofRUN-LLP
|
2.| (a) *New Incorporation / Conversion
| |-
| (b) CIN
|
3.| *Address of registered office of the LLP
| *Line I
| Line II
| *City
| *District|
| *State
| *Pin code|
| |
|
| Country
| ?
ISO country code
| Phone
Fax|
| *e-mail ID
|
4.| Name of the office of Registrar in which the proposed LLP is to be registered
|
5.| Business activities to be carried out by the LLP on incorporation
|
| (Note: In case business activities consists of banking, insurance, venture capital, mutual fund, stock exchange, asset

```

management, architect, architecture, merchant banking, securitization and reconstruction, chit fund and non banking financial activities, a copy of the in-principle approval of the regulatory authority should be attached)

6.] *Based on business activities, main division of industrial activity of the LLP as per NIC-2004

| Description of main division of industrial activity

|

7.] (a) *Total number of designated partners and partners of the LLP

|

{|

Having valid DIN/DPIN

Not having valid DIN/DPIN

Total number of

Designated Partners

(individual + nominees of bodies corporate)

Number of individual designated partners

Number of designated partners who are nominees
of bodies corporate

Total number of

Partners

(individual + body corporate)

Number of individual partners

Number of bodies corporate partners

|}

| (b) Particulars of individual designated partners

*Designated partner identification number (DIN/DPIN)

|

* Name

* Gender

| * Date of Birth

| * Nationality

* Whether resident of India

YesNo

* Occupation

* email ID|

* In case of company seeking conversion

(i) Number of shares held

| (ii) Paid up value of shares held (in Rs)

* From of contribution

| |-

* Monetary value of contribution (In Rs.)

|

| (In Words)

|

* Number of LLP(s) in which he/she is a partner

|

* Number of company(s) in which he/she is a director

|

* First Name

* Middle Name

* Surname

* Father's first name

Father's middle name

* Father's surname
* Gender
| * Date of Birth
| * Nationality
* Place of Birth
* Whether citizen of India
YesNo| * Whether resident in India
YesNo
*Occupation typeSelf EmployedProfessionalHomemakerStudentServiceman
* Area of Occupation
* If 'Others' selected, please specify
* Educational Qualification
*PANPassport number
| |
* email ID
* Permanent Address
* Line I
* Line II
* City
* State/Union Territory
| * Pin code
* ISO Country code
| Country
* Phone (with STD/ISD code)
| -
* Whether present residential address same as permanent residential addressYesNo
Present address
* Line I
Line II
* City
* State/Union Territory
| * Pin code
|
* ISO Country code
| Country
* Phone (with STD/ISD code)
| -
* Duration of stay at present address
| Years
| Months
If Duration of stay at present address is less than one year then address of previous residence
* Proof of identity
| * Residential Proof
|
Voter's identity card number
|
Driving license number
|
Aadhaar Number
|
Submit the proof of identity and proof of address under attachments.

In case of company seeking conversion

(i) Number of shares held

| (ii) Paid up value of shares held (in Rs)

* From of contribution

| | -

* Monetary value of contribution (In Rs.)

|

| (In Words)

|

* Number of LLP(s) in which he/she is a partner

|

* Number of company(s) in which he/she is a director

|

(C) Particulars of bodies corporate and their nominees as designated partners

* Type of body corporate

|

* Corporate identity number(CIN) or foreign company registration number(FCRN) or Limited liability partnership

| |

identification number(LLPIN) or Foreign limited liability partnership identification number(FLLPIN) any other registration number

* Name of the body corporate

Registered office address or Principal place of business in India or Principal place of business outside In

* Line I

* Line II

* City

* State/Union Territory

| * Pin code

|

* ISO Country code

|

Country

* Phone (with STD/ISD code)

| -

Fax

|

* email ID

In case of company seeking conversion

(i) Number of shares held

| (ii) Paid up value of shares held (in Rs)

* From of contribution

|

* Monetary value of contribution (in Rs.) (in words)

|

* Number of LLP(s) in which he/she is a partner

|

* Number of company(s) in which he/she is a director

|

Name and particulars of the person signing on behalf of the body corporate as nominee

* Designated partner identification number (DIN/DPIN)

|

* Name

* Gender
| * Date of Birth
| * Nationality
* Whether resident of India YesNo
* Occupation
|
* email ID
* Designation & Authority in body corporate
* Type of body corporate
|
* Corporate identity number(CIN) or foreign company registration number(FCRN) or Limited liability partnership
| |
identification number(LLPIN) or Foreign limited liability partnership identification number(FLLPIN) any other registration
number
* Name of the body corporate
Registered office address or Principal place of business in India or Principal place of business outside India
* Line I
* Line II
* City
* State/Union Territory
| * Pin code
|
* ISO Country code
|
Country
* Phone (with STD/ISD code)
| -
Fax
|
* email ID
In case of company seeking conversion
(i) Number of shares held
| (ii) Paid up value of shares held (in Rs)
* From of contribution
|
* Monetary value of contribution (in Rs.)
|
| (in words)
|
* Number of LLP(s) in which he/she is a partner
|
* Number of company(s) in which he/she is a director
|
Name and particulars of the person signing on behalf of the body corporate as nominee
* First Name
Middle Name
* Surname
* Father's first name
Father's middle name
* Father's surname
* Gender

| * Date of Birth
| * Nationality
* Place of Birth
* Whether citizen of India
YesNo| * Whether resident in India
YesNo
*Occupation typeSelf EmployedProfessionalHomemakerStudentServiceman
* Area of Occupation
* If 'Others' selected, please specify
* Educational Qualification
*PANPassport number
| |
* email ID
* Permanent Address
* Line I
Line II
* City
* State/Union Territory
| * Pin code
* ISO Country code
| Country
* Phone (with STD/ISD code),
| -
* Whether present residential address same as permanent residential addressYesNo
* Present Address
* Line I
Line II
* City
* State/Union Territory
| * Pin code
* ISO Country code,
| Country
* Phone (with STD/ISD code
|
* Duration of stay at present address
| Years
| Months
If Duration of stay at present address is less than one year then address of previous residence
| -
* Proof of identity
| * Residential Proof
Voter's identity card number
| | -
Driving license number
| | -
Aadhaar Number
|
Submit the proof of identity and proof of address under attachments.
(d). Particulars of individual partner(s)
* O Income tax permanent account number
| |

(Income-tax PAN) or O Passport number or O DIN/ DPIN

* Name of partner

|

* Father's Name

|

* Nationality

|

* Whether resident of India

|

* Date of Birth

| (DD/MM/YYYY)

* Occupation

* Permanent Residential Address

* Line I

Line II

* City

|

* District

|

* State

|

* Pin Code

|

* Country

?

ISO Country code

* Whether present residential address is same as the permanent residential address Yes No

* If no, present residential address:

* Line I

Line II

* City

|

* District

|

* State

|

* Pin Code

|

* Country

?

ISO Country code

Phone

Fax

|

Mobile

|

* email ID

In case of company seeking conversion

(i) Number of shares held

| (ii) Paid up value of shares held (in Rs)

* Form of contribution

|
* Monetary value of contribution (In Rs.)
|
| (In Words)
|
* Number of LLP(s) in which he/ she is a partner(m)
* Number of company(s) in which he/ she is a director
(e) Particulars of bodies corporate as partner(s)
* Type of body corporate
|
* CIN or FCRN or LLPIN or FLLPIN or any other identification number
| |
* Name of body corporate
|
* Country where Registered
|
* Full address of the registered office or principal place of business in India
|
ISO country code
| Phone
| Fax
* email ID
In case of company seeking conversion
(i) Number of shares held
| (ii) Paid up value of shares held (in Rs)
* Form of contribution
|
* Monetary value of contribution (In Rs.)
|
| (In Words)
|
Name and particulars of the person signing on behalf of the body corporate as nominee
* O Income tax permanent account number
| |
(Income-tax PAN) or O Passport number or O DIN/ DPIN
* Name of Nominee
|
* Father's Name
|
* Nationality
|
* Whether resident of India Yes No
* Date of Birth
| (DD/MM/YYYY)
* Occupation
|
Designation & Authority in body corporate
* Permanent Residential Address
* Line I
Line II
* City

|

* District

|

* State

|

* Pin Code

|

* Country

?

ISO Country code

* Whether present residential address is same as the permanent residential address YesNo

* If no, present residential address:

* Line I

Line II

* City

|

* District

|

* State

|

* Pin Code

|

* Country

?

ISO Country code

Phone

Fax

|

Mobile

|

* email ID

8. * Particulars of the proposed or approved name

Proposed or approved name

Significance of abbreviated or coined word in
the proposed name

State the name of the vernacular language(s) if
used in the proposed name and meaning thereof

9. (a) Whether the proposed name is based on a trademark registered or is subject matter of an application pending for
registration under the Trade Marks Act YesNo

(b) * If yes, furnish particulars of trade mark or application

|

10. * Total monetary value of contribution by partners in the LLP
(in Rs.) (in figures)

|

(in Words)

|

11. * Whether addendum to FiLLiP is required to be filed (refer instruction kit for details) YesNo

12. We, the several partners whose names are subscribed below, are desirous of being formed into a LLP for carrying
on a lawful business with a view to earn profit and have entered or agreed to enter into a LLP agreement in writing.
We respectively agree to contribute money or other property or other benefit or to perform services for the LLP in
accordance with the LLP agreement, the particulars of which are stated against our respective names.

We hereby give our consent to become a partner/ designated partner/ nominee/ nominee & designated partner of the LLP pursuant to section 7(4) / 25(3)(c) of the Limited Liability Partnership Act, 2008.

(Attach details in respect of names of partners/ nominees/ witnesses and their signatures in the below format as Subscribers' sheet attachment)

Name of each partner/ designated partner/
nominee/ nominee & designated partner

Designation (Designated Partner / Partner/
nominee/nominee & designated partner)

Signature of partner/ designated partner/
nominee/ nominee & designated partner

Name, address and profession (along with
professional membership number) of witness

Signature of witness

Note: Attach the details of company(s)/ LLP(s) in which partner/ designated partner is a director/ partner, as the case may be in the below format as an attachment

S.No

CIN/LLPIN

Name of Company/LLP

Attachments

List of attachments

1. Where the appointed partner is a body corporate, copy of resolution on the letterhead of such body
Proposed or approved name Significance of abbreviated or coined word in the proposed name State the name of the vernacular language(s) if used in the proposed name and meaning thereof
corporate to become a partner in the proposed LLP and a copy of resolution/ authorization of such body corporate also on a letterhead mentioning the name and address of an individual nominated to act as nominee/designated partner on its behalf.

2. * Proof of address of registered office of LLP.

3. * Subscribers' sheet including consent.

4. In principle approval of regulatory authority, if required.

5. Detail of LLP(s) and/ or company(s) in which partner/ designated partner is a director/ partner.

6. Approval of the owner of the trademark or the applicant of such application for registration of Trademark;

7. Copy of approval in case the proposed name contains any word(s) or expression(s) which requires approval from central government;

8. Copy of approval from the competent authority in case of collaboration and connection with the foreign country or place

9. Proof of identity and address of Applicant I

10. Proof of identity and address of Applicant

II

11. Copy of Board resolution of the existing company or consent of existing LLP as a proof of no objection

12. Optional attachment(s) - if any

Verification:

? *To the best of my knowledge and belief, the information given in this form and its attachments is correct and complete. I further confirm that the proposed name is not undesirable, identical or too nearly resembles to that of any other partnership firm or limited liability partnership or body corporate or a registered trade mark or a trade mark which is subject of an application for registration of any other person under the Trade Marks Act, 1999.

Part B ? Statement

Statement by a person who subscribed his name to the incorporation document

I, the designated partner of the LLP do state that

(i)

I am a person named in the incorporation document as a designated partner/partner of the limited liability partnership;

(ii)

the designated partner(s)/partner(s) have given their prior consent to act as designated partner(s)/partner(s);

(iii)

all the requirements of the Limited Liability Partnership Act, 2008 and the rules made thereunder in respect of Designated Partner Identification Number (DPIN), registration of the LLP and matters precedent or incidental thereto have been complied with;

(iv)

I make this statement conscientiously believing the same to be true.

To be digitally signed by a designated partner

*DIN/DPIN/PAN of the designated partner

|

Statement by an Advocate/ Company Secretary/ Chartered Accountant/ Cost Accountant in practice

I

O Son O Daughter

do state that

(i) I am

? Advocate

? Cost Accountant in whole time practice

? Chartered Accountant in whole time practice

? Company Secretary in whole time practice

engaged in the formation of the limited liability partnership and my membership number or certificate of practice number with

(name of regulatory body) is

(certificate of practice number in case of company secretary/ membership number in all other cases)

(ii) all the requirements of the Limited Liability Partnership Act, 2008 and the rules made thereunder have been complied with, in respect of incorporation and matters precedent and incidental thereto;

(iii) I make this statement conscientiously believing the same to be true

| *Whether associate or fellow

Associate

Fellow

|

For office use only:

E form Service request number (SRN)

| e Form filing date

| DD/MM/YYYY

Digital signature of the Authorizing officer

This e-Form is hereby approved

This e-Form is hereby rejected

Date of signing

(DD/MM/YYYY)

[FORM-3]

[Substituted Form 3 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 3[Pursuant to rule 21(1) and (2) of Limited Liability Partnership Rules 2009] Information with regard to Limited Liability Partnership Agreement and change, if any, made therein

Note - All fields marked in *are to be mandatorily filled.

1. Form filed for| Filing information with regard to initial LLP Agreement|-

| Filing information with regard to change in LLP Agreement

2.| *Limited Liability Partnership Identification Number (LLPIN)| |

3.| Name of Limited Liability Partnership (LLP).|

4.| (a) Address of registered office of the LLP|

| (b) *e-mail ID|

Part A - For filing information with regard to initial LLP Agreement

5.| (i) *Place at which the initial Agreement is made|

| (ii) *Date of Agreement| | (DD/MM/YYYY)|

| (iii) Date of Ratification, in case initial Agreement was made prior to incorporation| | (DD/MM/YYYY)|

6.| Business activities to be carried on by LLP on incorporation

|

7.| *Obligation to contribute

| (i) Total Number of partners as on the date of filing the Form| |

| (ii) Details of each partner to contribute money or property or other benefit or to perform services and their profit sharing ratio.

[1

[Substituted by Notification No. G.S.R. 593(E), dated 10.6.2016 (w.e.f. 1.4.2009).]

2

3

4

5

6

7

8

S.No.

DPIN/Income tax

PAN/Passport number

Name of Partner

Name of Nominee in case of body corporate

Designation

(Partner/Designated Partner)

Form of

contribution

Monetary value of

contribution

% of Profit

sharing]

| (iii) Total Monetary value of partners contribution in the LLP(in?)(in figures)|

| (iv) Service request number (SRN) of details update through the screen (if applicable)|

8.| *Mutual Rights and Duties of Partners

|

9.| *Restrictions, if any, on the partners authority

|

10.| *Management and Administration of LLP

| (i) Acts, matters or things, if any, which can be done only with the consent of all the partners/consent of requisite number or percentage of partners

|

| (ii) Procedure for calling, holding and conducting meetings (where the decisions are to be made at meetings of partners.)

|

11.| * Details of indemnity clause, if any

|

12.| * Details of agreement relating to

| (a) admission of a new partner

|

| (b) retirement of a partner

|

| (c) cessation of a partner

|

| (d) expulsion of a partner

|

| (e) resignation of a partner

|

13.| * Clause relating to resolution of disputes

| (a) between the partners

|

| (b) between the partners and the LLP

|

14.| Information relating to duration of LLP, if any

|

15.| *Information relating to voluntary winding up

|

16.| *Information of clauses in the agreement

| (a) relating to rule 16(2)|

| (b) relating to rule 17(1)|

| (c) relating to rule 20(1)|

| (d) relating to rule 24(8)(a)|

17.| Any other information or clause relating to the LLP Agreement not covered above

|

Part B - For filing information with regard to change (addition, omission or alteration) in the LLP Agreement.

18.| *Date of modification of the agreement| (DD/MM/YYYY)|

19.| *Whether change in agreement is on account of

| | Change in business activities|

| | Change in partner(s)|

| | Change in partners contribution and % of profit sharing|

| | Change in details pertaining to each field at serial number 8to17|

20.| (a) Description of business activities, after change

|

| (b) Based on new/changed business activities, enter main division of industrial activity of the LLP as per NIC-2004|

| (c) Description of main division of industrial activity

|

21.| (a) Details of each partners obligation to contribute money or property or other benefit to perform services and their profit sharing ratio, after change in LLP agreement

| Total number of existing designated partners and partners|

| Total number of designated partners and partners appointed|

[1

[Substituted by Notification No. G.S.R. 593(E), dated 10.6.2016 (w.e.f. 1.4.2009).]

2

3
4
5
6
7
8

Type of change

DPIN/Income tax PAN/Passport number

Name of Partner

Name of Nominee in case of body corporate

Designation (DP/P)

Form of contribution

Monetary value of contribution

% of profit sharing

Deletion

Change

No change

DP

P]

| (b) Details of designated partners and partners appointed|

[1

[Substituted by Notification No. G.S.R. 593(E), dated 10.6.2016 (w.e.f. 1.4.2009).]

2
3
4
5
6
7

Type of change

DPIN/Income tax

PAN/Passport numner

Name of Partner

Name of Nominee in case of body corporate

Form of

contribution

Monetary value of

contribution

% of profit

sharing

DP

P]

| Note:in designation column, specify 'DP' in case of designated partner or'P' in case of partner.

| (c) SRN of detail updated through the screen (in applicable)| |

| (d) Total monetary value of contribution, after changes (in?) (in figures)

| (i) Existing| |

| (ii) Addition| |

| (iii) Reduction| |

| (iv) Total (i + ii - iii)| |

| (v) Total (in words)| |

22.| Change in details pertaining to each field at serial number 8 to 17 seperately

|

| Attachments| | List of attachments|-

1.| Initial LLP Agreement| |

2.| Supplementary/amended LLP agreement containing changes| |-

3.| Optional attachment(s) - if any| |-

| | |

| Statement

| I, the designated partner of the LLP do state that

| (i) I am a person named in the Incorporation Document as a designated partner/I am a designated partner of the LLP.

| (ii) the particulars given above are in accordance with the initial LLP agreements/subsequent agreement relating to change in the LLP agreement;

| (iii) the original copy of LLP Agreement will be produced whenever called for;

| (iv) In case of change in contribution, the fees payable to Registrar has been/being paid;

| (v) I make this statement conscientiously believing, the same to be true;

| (vi) I am authorised to sign this form.

| To be digitally signed by a designated partner|

| * DPIN of the designated partner|

| Certificate

| It is hereby certified that I have verified the above particulars (including attachment(s) from the records of.

|

| and found them to be true and correct, I further certify that all required attachment(s) have been completely attached to this form.

| Chartered Accountant(in-whole-time practice)or| Cost accountant(in whole-time practice)or

| Company Secretary (in whole-time practice)| |

| * Whether associate or fellow| Associate| Fellow| |

| * Membership number or certificate of practice number|

| |

|}

| For office use only :

| eForm Service request number (SRN)| | eForm filing date| | (DD/MM/YYYY)

| Digital signature of the authorising officer

| This e-Form is hereby registered| | |

| Date of signing| | (DD/MM/YYYY)| |

[FORM-4]

[Substituted Form 4 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 4[Pursuant to rule 8, 10(8), 22(2) and 22 (3) of Limited Liability Partnership Rules, 2009)] Notice of appointment, cessation, change in name/address/designation of a designated partner or partner and consent to become a partner/designated partner.

Note - All fields marked in *are to be mandatorily filled.

Note of appointment, cessation, change in name/address/designation of designated partner or partner

1.| *Limited Liability Partnership Identification Number (LLPIN)| |

2.| (a) Name of Limited Liability Partnership (LLP).|

| (b) Address of registered office of the LLP|

| (c) *e-mail ID|

3.| (a) *Total number of designated partners for whom this form (including addendum) is required to be filed|

| (b) *Total number of Partners for whom this form (including addendum) is required to be filed|

| (Refer instruction kit for details on filing on filing the addendum form)

4.| *Number of individual designated partner(s) for which this form is being filed|

(I) (a) *The form is being filed for| Appointment| Cessation| Change in designation|-

| Change in name| Change in address| |-

(b) *Date of Event| | (DD/MM/YYYY)| |-

(c) Changed designation (Category)| | (refer instruction kit for details)|-

(d) In case of change in designation to Designated Partner,| |-

DPIN/Income-tax PAN/Passport number of partner

(e) *Designated partner identification number(DPIN)| | |-

(f) Name| |-

(g) Father's Name| |-

(h) (i)Permanent residential address| |-

(ii)Present residential address| |-

(i) Nationality| |-

(j) Whether resident of India| YesNo|-

(k) Date of Birth| | (DD/MM/YYYY)|-

(l) *Occupation| |-

(m) *Number of LLP(s) in which he/she is a partner| | |-

(n) *Number of company(s) which he/she is a director| |

5. | *Number of bodies corporate and their nominee as designated partners for which this form is being filed|

(l) (a) *The form is being filed for| Appointment| Change in nominee| Change in designation|-

| Cessation| Change in address of body corporate| Change in name of body corporate|-

| Change in name of nominee| Change in address of nominee|-

(b) *Date of Event| | (DD/MM/YYYY)| |-

(c) *Type of body corporate| |-

(d) *Corporate identity number (CIN) or Foreign company registration number (FCRN) or Limited liability partnership identification number (LLPIN) or Foreign limited liability partnership identification number (FLLPIN) or any other identification number

| |-

(e) *Name of body corporate| |-

(f) *Country where registered| |-

(g) *Full address of the registered office or principal place of business in India| |-

ISO country code| | Phone| | Fax| |-

*e-mail ID| |-

(h) *Previous name, address of the body corporate| |-

(i) Name and particulars of the person signing on behalf of the body corporate as nominee|-

(i) (DPIN)| | | |-

(ii) Name| |-

(iii) Father's Name| |-

(iv) (a)Permanent residential address| |-

(b)Present residential address| |-

(v) Nationality| |-

(vi) Whether resident of India| YesNo|-

(vii) Date of Birth| | (DD/MM/YYYY)|-

(viii) *Occupation| |-

(ix) *Designation & Authority in body corporate| |-

(x) Changed designation (Category)| | (refer instruction kit for details)|-

(xi) DPIN/PAN/Passport Number of the previous nominee| |-

(xii) Name of the previous nominee|

6. | *Number of individual partner(s) for which this form is being filed|

(l) (a) *The form is being filed for| Appointment| Cessation| Change in name of partner|-

| Change in designation| Change in address| |-

(b) *Date of Event| | (DD/MM/YYYY)| | |-

(c) *Income tax permanent account number (Income-tax PAN) orPassport number orDPIN| | Verify Income-tax PAN/Pre-fill|-

(d) *Name of partner| |-

(e) *Father's Name| |-

(f) *Permanent Residential Address|-

Line I

|-

Line II

|-

*City| | *District| |-

*State| | *Pin code| | ISO country code| |-

*Country| |-

(g) *Whether present residential address is same as the permanent residential addressYesNo|-

(h) If no, present residential address :|-

Line I

|-

Line II

|-

*City| | *District| |-

*State| | *Pin code| |-

*Country| |-

ISO country code| | Phone| | Fax| |-

Mobile| |-

*e-mail ID| |-

(i) Previous name/previous address| |-

(j) *Whether resident in India| YesNo|-

(k) *Nationality| |-

(l) *Date of Birth| | (DD/MM/YYYY)|-

(m) *Occupation| |-

(n) Changed designation (Category)| | (refer instruction kit for details)|-

(o) *Number of LLP(s) in which he/she is a partner| | |-

(p) *Number of company(s) in which he/she is a director| |

7. | *Number of bodies corporate as partners and their nominees for which this form is being filed.|

(l) (a) *The form is being filed for|-

Appointment| Cessation| Change in nominee| Change in designation|-

Change in address of body corporate| Change in name of nominee| Change in name of body corporate|-

Change in address of nominee|-

(b) *Date of Event| | (DD/MM/YYYY)| |-

(c) *Type of body corporate| |-

(d) *CIN or FCRN or LLPIN or FLLPIN or any other identification number| | |-

(e) *Name of the body corporate| |-

(f) *Country where registered| |-

(g) *Full address of the registered office| |-

ISO country code| | Phone| | Fax| |-

*e-mail ID| |-

(h) *Previous name, address of the corporate| |-

(i) Name and particulars of the person signing on behalf of the body corporate as nominee|-

(i)Income-tax PAN orPassport number orDPIN| | Verify Income-tax PAN/Pre-Fill|-

[(ii) *Name of nominee]

[Substituted by Notification No. G.S.R. 593(E), dated 10.6.2016 (w.e.f. 1.4.2009).]

| |-

(iii) *Father's Name| |-

(iv) *Permanent Residential Address|-

Line I

|-

Line II

| -

*City| | *District| | -

*State| | *Pin code| | ISO country code| | -

*Country| | -

(v) *Whether present residential address is same as the permanent residential address YesNo| -

(vi) If no, present residential address :-

Line I

| -

Line II

| -

*City| | *District| | -

*State| | *Pin code| | -

*Country| | -

ISO country code| | Phone| | Fax| | -

Mobile| | -

*e-mail ID| | -

(vii) Previous name/previous address| | -

(viii) *Whether resident in India| YesNo| -

(ix) *Nationality| | -

(x) *Date of Birth| | (DD/MM/YYYY)| -

(xi) *Occupation| | -

(xii) *Designation & Authority in body corporate| | -

(xiii) Change designation (Category)| | (refer instruction kit for details)| -

(xiv) Income-tax PAN/passport number/DPIN of the previous nominee| | -

(xv) Name of the previous nominee| | -

8. | Whether addendum to eForm 4 is required to be filed (refer instruction kit for details) YesNo

Note : Attach the consent to become a partner/designated partner in the following format as an attachment

| We, the several partners whose names are subscribed below, hereby give our consent to become a partner/designated partner/nominee/nominee & designated partner of the LLP pursuant to section 7(4)/25(3)(c) of the Limited Liability Partnership Act, 2008.

| We, respectively agree to contribute money or other property or other benefit or perform services for the LLP in accordance with the LLP agreement, the particulars of which are stated against our respective names.

Name of each partner/designated partner/nominee/nominee & designated partner

Designation (Designated Partner/Partner/nominee/nominee & designated partner)

Name of the body corporate in case of nominee of body corporate

Date of passing resolution for appointment of nominee

Signature of partner/nominee

Note : Attach the details of company(s) LLP(s) in which partner/designated partner is a director/partner, as the case may be in the below format as an attachment

S.No.

CIN/LLPIN

Name of Company/LLP

| Attachments| | List of attachments| -

1. | Consent to act as partner/designated partner| |

2. | Evidence of cessation| | -

3. | Affidavit or any other proof of change of name| | -

4. | Where the appointed partner is a body corporate, copy of resolution on the letterhead of such body corporate to

become a partner in the proposed LLP and a copy of resolution/authorisation of such body corporate also on letterhead mentioning the name and address of an individual nominated to act as nominee/designated partner on its behalf. | -

5. | Detail of LLP(s) and/or company(s) in which partner/designated partner is a partner/director | -

6. | Optional attachment(s) - if any | -

|||

Statement

| *To the best of my knowledge and belief, the information given in this form and its attachments is correct and complete.

| *I being a designated partner of the LLP, am authorised to sign and submit this form.

| To be digitally signed by a designated partner |

| * DPIN of the designated partner |

| Certifiate

| It is hereby certified that I have verified the above particulars (including attachment(s) from the records of.

|

| and found them to be true and correct, I further certify that all required attachment(s) have been completely attached to this form.

| Chartered Accountant(in-whole-time practice)or| Cost accountant(in whole-time practice)or

| Company Secretery (in whole-time practice)| |

| * Whether associate or fellow| Associate| Fellow| |

| * Membership number or certificate of practice number|

| |

|}

| This eForm has been taken on file maintained by the registrar through electronic mode and on the basis of statement of correctness given by the filling LLP.

| OR

| For office use only :

| eForm Service request number (SRN)| | eForm filing date| | (DD/MM/YYYY)

| Digital signature of the authorising officer

| This e-Form is hereby registered| | |

| Date of signing| | (DD/MM/YYYY)| |

[Form-5]

[Substituted Form 5 by Notification No. S.O. 896 (E), dated 18.9.2018 (w.e.f. 1.4.2009).]

LLP FORM NO. 5[Pursuant to rule 20(2) of LimitedLiability Partnership Rules, 2009]

Notice for change of name

Note - All fields marked in * are to be mandatorily filled.

1. | 1. * Limited Liability Partnership Identification number (LLPIN)

|

2. | (a) Name of the Limited Liability partnership (LLP)

| (b) Address of registered office of the LLP

| (c) * e-mail ID of company

3. | * Service Request Number (SRN) of RUN-LLP

4. | New name of LLP after change

|

5. | Whether change in name is due to change in business of the LLP

YesNo

| If yes, mention new/changed business of LLP

|

| If no, give other reasons for change of name

|

6. | Whether change in name is

? based on the procedure laid down in the LLP agreement

? with consent of partners

? based on the direction from Central Government

7. SRN of Form 3 (in case change of name is due to change in business of LLP)

8. * Date on which consent of partner(s) was taken under sub-rule(1) of rule 20

(DD/MM/YYYY)

| Attachments

| List of attachments|-

1. Copy of the minutes of decision/resolution/consent of partners

|

2. The extracts of the relevant provision of the Limited Liability Partnership Agreement, if any.

|-

3. If change is due to a direction received from the Central Government/Registrar, then a copy of such direction.

|-

4. Optional attachment(s) - if any

|-

|||

Statement

| ? To the best of my knowledge and belief, the information given in this Form and its attachments is correct and complete.

| ? * I, being a designated partner of the LLP, am authorised to sign and submit this form.

To be digitally signed by a designated partner

| * DIN/DPIN of the designated partner

| Certificate

| It is hereby certified that I have verified the above particulars (including attachment(s)) from the books and records of

|

| and found them to be true and correct. I further certify that all the required attachment(s) have been completely attached to this form.

| *Chartered accountant in whole-time practice

Cost accountant in whole-time practice

| Company secretary in whole-time practice

| * Whether associate or fellowAssociateFellow

|

| *Membership number or certificate of practice number

||

For office use only:

| E form Service request number (SRN)

| e Form filing date| | (DD/MM/YYYY)

| Digital signature of theauthorising officer

| This e-Form is hereby approved

|||-

| This e-Form is hereby rejected

||

| Date of signing

| (DD/MM/YYYY)

|

Form 6

(See rule 22(1))

Intimation Of Particulars Of Name Or Address Of A Partner/change In Such Particulars By A Partner To The Limited Liability Partnership

Note - All fields marked in * are to be mandatorily filled.

1. *This form is for intimating to the Limited Liability Partnership particulars

change in particulars by the partner.

Type of partner:

I. Individual

II. Limited liability partnership

III. Company

IV. Limited liability partnership incorporated outside India

V. Company incorporated outside India

Part A

I. Intimation Of Particulars - Individual

2. Name

(a)

*First Name:

(b) *Last Name:

(c)

*Middle Name:

(d) *Name as written:

3.

*Father's Name/Husband's Name

4.

*Whether citizen of India

Yes

No

5.

*Nationality:

6.

*Whether Resident in India:

Yes

No

7. *Date of Birth:

8.

*Gender:

M

F

9.

*Income-tax permanent account number

10. Voter's identity card

11. Passport number

12. Others (specify)

13.

*Permanent Residential Address

*Line I

*Line II

*City

*State

*Country

*Pin Code

Phone

Fax

*E-mail

14.

*Whether present residential address is the same as permanent residential address

|||||

Yes

No

15. Present residential address

*Line I

Line II

City

State

Country

Pin Code

Phone

Fax

16.

*Whether a partner of partnership firm or limited liability partnership or director of a company

Yes

No

If Yes

(a) Names and addresses of the partnership firm(s)

Name

Address of principal office

(b) LLPIN and name of the limited liability partnership(s)

LLPIN

Name of limited liability partnership

(c) CIN and names of the companies in which he is a director

CIN

DIN

Name

II. Intimation Of Particulars - Limited Liability Partnership

LLPIN:

Name :

PAN number of the limited liability partnership

Full address of registered office

Name of the person who will be signing on behalf of the limited liability partnership

Designation and authority of the person signing on behalf of limited liability partnership

Please give particulars of the person authorized in the format as given in sub-part I of Part A from serial number 2 to 16.

III. Intimation Of Particulars - Company

CIN

Name

PAN number of the company

Full address of registered office

Name of the person who will be signing on behalf of the company

Designation and authority of the person signing on behalf of the company

Please give particulars of the person authorized in the format as given in sub-part I of Part A from serial number 2 to 16.

IV. Intimation Of Particulars - Limited Liability Partnership Incorporated Outside India

Name :

Country where the limited liability partnership is registered/incorporated

Registration/Incorporation Number

Full address of the registered office

The statute under which the limited liability partnership is registered

Name of the person who will be signing on behalf of the limited liability partnership incorporated outsideIndia

Designation and authority of the person signing on behalf of limited liability partnership incorporated outsideIndia

Please give particulars of the person authorized in the format as given in sub-part I of Part A from serial number 2 to 16.

V. Intimation Of Particulars - Company Incorporated Outside India

Name :

Country where the company is registered/incorporated

Registration/Incorporation Number

Full address of the registered office

The statute under which the company is registered

Name of the person who will be signing on behalf of the company incorporated outside India

Designation and authority of the person signing on behalf of company incorporated outside India

Please give particulars of the person authorized in the format as given in sub-part I of Part A from serial number 2 to 16.

|||||

Part B ? Intimation Of Change In Particulars Relating To Name Or Address Of The Partner

Please give below the particulars sought to be changed

The following documents in support of the above are attached

(a)

(b)

I _____ son/daughter of _____ declare and verify that the information given in the form and the documents enclosed is correct and complete.

Signature

Date

Place

[***]

[Form 7 Deleted by Notification No. G.S.R. 506 (E) dated 5.7.2011 (w.e.f. 1.4.2009).]

Form 7

[See rule 10]

Application For Allotment Of Designated Partner Identification Number

Note: All fields marked in * are to be mandatorily filled.

(not to be filled by the applicant as it is generated by the system)

{|

Provisional Designated Partner Identification Number (DPIN)

(not to be filled by the applicant as it is generated by the system)

Applicant's name (enter full name and do not use abbreviations)

1. DIN (if allotted)

Affix a latest passport size photograph and get it attested / certified for submission of physical copy of the form with Central Government.

2. Name

(a) *First name :

(b) *Last name :

(c) *Middle name :

(d) *whether nominee of a body corporate

Yes

No

If Yes, the details of the body corporate:

Name of the body corporate

Registration Number

Address of the registered office of the body corporate

Line 1

Line 2

City

*District

State

*PIN Code

ISO Country Code

Country

Phone

Fax

Email ID

3. Father's/Husband's name

(a) *First name :

(b) *Last name :

(c) *Middle name :

4. *Whether a citizen of India:

Yes

No

5. *Nationality:

6.*Date of Birth

(DD/MM/YYYY)

7. *Gender :

8. Place of birth

9. Income-tax permanent account number

10. Voter's identity card number :

11. Passport number :

12. Driving license number :

13. Other (please specify):

14. *Permanent Residential Address

(a) *Line I

*Line II

(b) *City :

(c) *State :

(d) *Country:

(e) *Pin code:

(f) Phone:

(g) Fax:

(h) Email ID

15. *Whether present residential address is same as permanent residential address

Yes

No

16. Present Residential Address

(a) Line I

Line II

(b) City

(c) State

(d) Country

(e) Pin code

(f) Phone

(g) Fax

17. *Whether resident of India

Yes

No

Specimen signature of the applicant

(within the box)

Instruction Kit

Submit

Following documents are being enclosed :

Proof of Identity (Tick against the document being enclosed)

1. Passport
2. Election (voter identity) card
3. Driving license
4. Income-tax PAN card
5. Others-Please Specify

Proof of residence (Tick against the document being enclosed)

1. Passport
2. Election (voter identity) card
3. Ration card
4. Driving license
5. Electricity bill
6. Telephone bill
7. Bank account statement
8. Others-Please Specify

I

son/daughter of

resident of

hereby declare and

verify that the information given in this application and the documents enclosed is correct and complete. I confirm that I do not possess and have not been allotted another Designated Partner Identification Number by the Central Government. I also confirm that no other application (including physical documents) submitted by me is pending for allotment of Designated Partner Identification Number.

Signature of the applicant

(to be signed for submission of physical copy of the form with Central Govt)

Dated

(DD/MM/YY)

Place

General Guidelines For Dpin Application

1.

Obtain Provisional DPIN- The applicant should first fill in the application online, generate a provisional DPIN and then take a print out for dispatch to the DPIN Processing Cell. All application without a provisional DPIN cannot be accepted for further process and would merit straight rejection.

2.

Attestation/certification of photograph, proof identity and proof of residence- A Public Notary or a Gazetted Officer of a Government or a practising professional (Chartered Accountant/Company Secretary/Cost Accountant) or a Company Secretary in full time employment of the company.

3.

Particulars of the attesting/certifying authority- The attesting authority must indicate the following while attesting the documents : (i) Signatures; (ii) Name in full in Capitals; (iii) Registration No; and (iv) Seal/Stamp.

4.

Language of proofs for identity and residence- In case the proof of identity and proof of residence is in a language other than Hindi or English, a certified copy of translation of the same in Hindi or English should be enclosed and the translation be also certified by the professional who has otherwise certified the said proofs.

5.

Date of Birth- The proof of identify enclosed with DPIN Form should also contain the Date of Birth of the applicant and the same should match the Date of Birth filled in the application form. In case the proof of identify does not indicate the Date of Birth then additional proof of Date of Birth, duly certified/attested, should be attached.

6.

Father's Name- The proof of identify enclosed with DPIN Form should also contain the Father's Name of the applicant and the same should match the Father's Name filled in the application form. In case the proof of identify does not indicate the Father's Name then additional proof of Father's Name, duly certified /attested, should be attached.

7.

Process for applications who are (i) Indian citizens residing abroad; (ii) foreign nationals residing in India; and (iii) foreign nationals residing outside India- While general conditions as mentioned at Sr.No.1,3,4 and 5 would be applicable in these categories also, the certification of attached documents and the photograph may be done by a notary in the home country of the applicant or the designated partner of the LLP. Further, in the case of a Foreign National, certified copy of the valid passport should be enclosed.

For Office Use Only

Signature of the Authorizing Officer

Dated

Place

}]

[Form 8]

[Substituted by Notification No. G.S.R. 430 (E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 8[Pursuant to rule 24 of Limited Liability Partnership Rules, 2009] Statement of Account & Solvency

Note - All fields marked in *are to be mandatorily filled.

| | *Annual or Interim| Annual| Interim|

| * Statement of Account and Solvency as at 31/March/|

| * Limited Liability Partnership identification number (LLPIN)/Foreign Limited Liability Partnership identification number (FLLPIN)|

| Name of Limited Liability Partnership (LLP)/Foreign Limited Liability Partnership (FLLP)|

| Address of registered office of the LLP or principal place of business in India of the FLLP|

| e-mail ID|

| Total monetary value of obligation of contribution as on above date (in?)|

| Part A : Statement of Solvency

| We being the designated partners or authorised representatives of

|

| do solemnly affirm and sincerely declare that we have made a full inquiry into the affairs of this Limited Liability Partnership/Foreign Limited Partnership, and that, having done so, formed the opinion that the LLP/FLLP is not able to pay its debts in full as they become due in the normal course of business.

*| We append a Statement of the Assests and Liabilities as at(DD/MM/YYYY) and income and Expenditure for the period ended on(DD/MM/YYYY) being the latest practicable date before the making of this declaration.

*| We have already filed a statement indicating creation of charges or modification or satisfaction thereof till the present financial year.

*| We declare that the turnover does not exceed exceeds 40 lakh.

*| We declare that the obligation of contribution does not exceed exceeds 25 lakh. rupees.

*| The partners/authorised representatives have taken proper care and responsibility for maintenance of adequate accounting records and preparation of accounts in accordance with the provisions of the LLP Act and the Rules made there under.

*| We make this statement conscientiously believing to be true, and by virtue of the provision of the Limited Liability Partnership Act, 2008, the rules made thereunder.

| Part B : Statement of Account

| Statement of Assets and Liabilities as at|

(DD/MM/YYYY)|

Particulars

Figures

as at the end of the current reporting period

Figures

as at the end of the previous reporting period

I

CONTRIBUTION AND LIABILITIES1. Partners Funds

Contribution

received.

Reserves

and Surplus (including surplus being the profit/loss made during year)

2.

Liabilities

Secured

loans

Unsecured

loans

Short

Term Borrowings

Creditors/Trade

payables-Advance from customers

Other

Liabilities (to specify)

Provisions

for

taxation

for

contingencies

for

insurance

Other

provisions (if any)

TOTAL

II. ASSETS

Gross

fixed Assests (including intangible assests)

Less

: depreciation and amortisation

Net

fixed assets

Investments

Loans

and advances

Invetories

Debitors/Trade

receivables

Case

and cash equivalents

Other

assests (to specify)

TOTAL

| Note :Please attach statement of contingent liabilities not provided for, as an attachment

| * Statement of Income and Expenditure

Particulars

Figures for the period Current reporting period)

From(DD/MM/YYYY)To(DD/MM/YYYY)

Figures for the period(Previous reporting period) From(DD/MM/YYYY)To(DD/MM/YYYY)

IncomeGross turnover

Less : Excise duty or service tax

Net Turnover details Domestic turnover

(i) Sale of goods manufactured

(ii) Sale of goods traded

(iii) Sale or supply of services

Export turnover

(i) Sale of goods manufactured

(ii) Sale of goods traded

(iii) Sale or supply of services

Other Income

Increase/(decrease) in stocks [Including for raw materials,
work in progress and finished goods)

Total Income

Expenses

Raw material consumed

Purchases made for re-sale

Consumption of stores and spare parts

Power and fuel

Personnel Expenses

Administrative expenses

Payment to auditors

Selling expenses

Insurance expenses

Depreciation and amortisation

Interest

Other expenses

Total expenditure

Net Profit or Net Loss (before taxes)

Provision for Tax

Profit after Tax

Profit transferred to Partner's account

Profit transferred to Reserves and surplus

| Attachments| | List of attachments|-

1.| Disclosures under Micro, Small and Medium Enterprises Development Act, 2006| |

2.| Statement of contingent liabilities not provided for, if any| |-

3.| Optional attachment(s) - if any| |-

| |

| Signature of Designated Partners of LLP or authorised representatives of a Foreign LLP|

*DPIN/Income-tax PAN

| Signature of Designated Partners of LLP or authorised representatives of a Foreign LLP|

*DPIN/Income-tax PAN

| *Certificate by| Designated partner or| Authorised representative or| Auditor

| It is hereby certificate that I have verified the particulars contained in the Statement of Account and Solvency including

the Statement of assets and liabilities as at(DD/MM/YYYY) and the income and expenditure for the period ending(DD/MM/YYYY) from the accounting records and other books and papers of

|

| and found them to be true and fair.

| * Address| Line I|

| | Line II|

| *City| |

*District|

| *State| |

*Pin code|

| *Country| |

| *Phone| |

Fax|

ISO country code|

| *e-mail ID| |

| To be digitally signed by

| Designated Partner/Authorised representative/Auditor|

| Certificate

| It is hereby certified that I have verified the above particulars (including attachment(s) from the records of.

|

| and found them to be true and correct, I further certify that all the required attachment(s) have been completely attached to this form.

| Chartered Accountant(in-whole-time practice)or| Cost accountant(in whole-time practice)or

| Company Secretary (in whole-time practice)|

| Whether associate or fellow| Associate| Fellow|

| Membership number or certificate of practice number|

| |

| This e-form has been taken on file maintained by the registrar through electronic mode and on the basis of statement of correctness given by the filing LLP.

Appendix to Statement of Account and Solvency

Particulars for creation or modification or satisfaction of charges by an LLP

1.| * Limited Liability Partnership identification number (LLPIN)/Foreign Limited Liability Partnership identification number (FLLPIN)|

2.| (a) Name of the LLP/FLLP|

| (b) Address of registered office of the LLP or principal place of business in India of the FLLP|

| (c) e-mail ID|

3.| (a) This form is for| Creation of Charge| Modification of Charge| Satisfaction of Charge

| (b) Charge identification number of the charge to be modified or satisfied|

| (c) Whether charge is modified in favour of asset reconstruction company (ARC) or assignee| YesNo

| (d) Whether charge holder is authorised to assign the charge as per the charge agreement| YesNo

4.| *Type of Charge| Immovable property| Ship| Any interest in immovable Property| Goodwill

| | Book debts| Trade marks| Patent, licence under a patent| Floating charge

| | Movable property(not being pledge)| | Copyright or licence under copy right| If others specify

|

5.| (a) *Whether consortium finance is involved| Yes| No|

| (b) *Whether joint charge is involved| Yes| No|

6.| *Number of charge holders|

7.| Particulars of charge holders

| *Category|

| If others, specify|

| CIN, in case charge holder or ARC or assignee is a company|

| *Name

|

| * Address| Line I|

| | Line II|

| *City| |

*District|

| *State| |

*Pin code|

| *Country| |

| *Phone| |

Fax|

ISO country code|

| *e-mail ID| |

8.| *Nature of description of instrument(s) creating or modifying the charge.

|

9.| (a) Date of the instrument creating the charge|

(DD/MM/YYYY)

| (b) Date of the instrument Modifying the charge|

(DD/MM/YYYY)

10.| (a) *Whether charge created or modified outside India| Yes| No|

| (b) In case charge created or modified outside India on the property situated outside India, the date of receipt of the documents in India.|

(DD/MM/YYYY)

11.| (a) Amount secured by the charge

| (In case the amount is in foreign currency, rupee equivalent to be stated) (in?)|

| (In case of modification of charge, enter the amount secured by the charge after such modification)

| (b) Amount secured by the charge in words

|

| (c) In case amount secured by the charge is in foreign currency, mention details

|

12.| Brief particulars of the principal terms and conditions and extent and operation of the charge.

| (a) *Rate of interest|

| (b) *Terms of repayment|

| (c) *Margin|

| (d) *Extent and operation of the charge|

| (e) Other|

13.| In case of acquisition of property, subject to charge furnish the following details to existing charge on the property so acquired

| (a) Date of instrument creating or evidencing the charge|

(DD/MM/YYYY)

| (b) Description of the instrument creating or evidencing the charge|

| (c) Date of acquisition of the property|

(DD/MM/YYYY)

| (d) Amount of the charge (in?)|

| (e) Particulars of the property charged|

14.| * Short particulars of the property charged (including location of the property)|

15.| (a)* Whether any of the property or interest therein under reference is not registered in the name of the LLP| YesNo

| (b) If yes, in whose name it is registered|

| Note : If more than one charge holder involved, details of extent of charge, particulars of property charged, amount secured to be provided in attachment.

16.| Particulars of present modification|

17. | Date of Satisfaction in full. |

(DD/MM/YYYY)

| Attachments | | List of attachments | -

1. | Instrument of creation or modification | |

2. | Instrument evidencing creation or modification of charge in case of acquisition of property which is already subject to charge | -

3. | Particulars of all joint charge holders | -

4. | Letter of charge holder stating that the amount has been satisfied. | -

5. | Optional attachment(s) - if any | -

| | |

| To be digitally signed by

| Designated Partner/Authorised representative/Auditor |

| DPIN or Income-tax PAN |

| Verification

| I/we confirm that the attached charge instruments(s) or documents(s) is/are true copies of the original which is/are available with the charge holder and all the information and particulars above are derived there from and are concisely and correctly stated

| I/we am/are duly authorised to sign this form.

| To be digitally signed by

| *Designation |

| Charge holder |

| To be digitally signed by

| Designation |

| ARC or assignee |

| Certificate

| It is hereby certified that I have verified the above particulars (including attachment(s)) from the records of

|

| and found them to be true and correct, I further certify that all the required attachment(s) have been completely attached to this form.

| Chartered Accountant (in whole-time practice) or | Cost accountant (in whole-time practice) or

| Company Secretary (in whole-time practice) |

| *Whether associate or fellow | Associate | Fellow |

| *Membership number or certificate of practice number |

| |

| This e-form has been taken on file maintained by the registrar through electronic mode and on the basis of statement of correctness given by the filing LLP.

Form 9

[See rule 7 and 10(8)]

Consent To Act As Designated Partner

Note - All fields marked in *are to be mandatorily filled.

To

_____ Limited Liability Partnership

(Name and address of the limited liability partnership)

Date: DD/MM/YYYY

Subject : Consent To Act As Designated Partner

I, _____ hereby give my consent to act as designated partner of the _____ (name of the LLP) pursuant to Section 7(3) of the Act.

Particulars

1. *Designated Partner Identification Number (DPIN)

2. *Name

3. *Father's /Husband's Name

4. *Present residential address

5. *e-mail ID

6. Name of the Partnership Firm

Or

LLPIN

& Name of Limited Liability Partnership

Or

CIN

& Name of the Company

Or

Name of any other body corporate

whosenominee the designated partner is.

I hereby state that I satisfy the conditions and requirements for being eligible to be a designated partner and I have not been disqualified to act as a designated partner.

To be signed by the designated partner:

DPIN

Date:

Place:

Form 10 Deleted by Notification No. G.S.R. 506 (E) dated 5.7.2011 (w.e.f. 1.4.2009)

Form 10

[See rule 10(9)]

Intimation Of Changes In Particulars By Designated Partners

Note- All fields marked in *are to be mandatorily filled.

Note I.- Enclose necessary documents attested by a Notary or gazetted officer or a Company Secretary, a Chartered Accountant, a Cost Accountant holding a certificate of practice under the Company Secretaries Act, 1980, Chartered 95 Accountants Act, 1949, and the Cost and Works Accountants Act, 1959 respectively.

Note II- In case any proof enclosed is in language other than Hindi or English then the translated copy of the same in English or Hindi shall be required to be enclosed. It should be certified by the same professional who has certified other proof.

Note III- In case the designated partner submitting change in particulars is not residing in India, the certification of attached documents and the photograph may be done by a notary in the home country of the applicant. Further, in the case of a foreign national, certified copy of the valid passport should be enclosed.

Note IV- The photograph of the applicant being affixed on the form should also be attested.

If any of the requirements are not met, changes will not be considered.

I _____ son/daughter of _____ resident of _____
hereby declare and verify that the information given in this Form and the documents enclosed is correct and complete.

Signature of the applicant

Date _____ (DD/MM/YYYY)

Place _____

For Office Use Only

Signature of the Authorizing Officer

Date _____ (DD/MM/YYYY)

Place _____

[FORM-11]

[Substituted Form 11 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 11[Pursuant to rule 25(1) of Limited Liability Partnership Rules, 2009] Annual Return of Limited Liability Partnership (LLP)

Note - All fields marked in *are to be mandatorily filled.

1. | (a) *Annual return made upto 31st day of March of
Year|
- | (b) *Start date of financial year for which annual return is being filed.|
(DD/MM/YYYY)
2. | * Limited Liability Partnership identification number (LLPIN)|
3. | *Name of the Limited Liability Partnership (LLP)|
4. | (a) Address of the registered office of the LLP|
- | (b) *e-mail ID|
5. | Other address if declared under section 13(2) for service of documents|
6. | Business Classification| |
7. | Principal business activities of the LLP|
8. | Details as on 31st March of the period for which annual return is being filed
| (a) *Total number of designated partners| |
- | (b) *Total number of partners| |
- | (c) *Total obligation of contribution of partners of the LLP (in?)| |
- | (d) *Total contribution received from all partners of the LLP (in?)| |
- | Note : 'Contribution received' to be entered in corresponding Form 8 should be same as the value entered in filed enter
8(d) above.
9. | Service request number (SRN) of the partners details validated through the screen (if applicable)| |
10. | Detail of individual(s) as partner (including Designated partner)
Designation| | -
- Designated Partner Identification number (DPIN) Income tax permanent account number (Income-tax PAN) Passport
number| | -
- Name| | -
- Father's Name| | -
- Permanent Residential address| | -
- Present Residential address| | -
- Nationality| | Date of Appointment| | (DD/MM/YYYY)| -
- Date of Cessation| | (DD/MM/YYYY)| | -
- Date of charge in designation| | (DD/MM/YYYY)| | -
- Previous designation| | | -
- Previous Name, if any| | -
- Obligation of contribution (in?)| | | -
- Contribution received and accounted for (in?)| | | -
- *Whether resident in India| YesNo| -
- *Number of limited liability partnership(s) which/he she is a partner| | | -
- *Number of company(s) in which he/she is a director| | |
11. | Detail of bodies corporate as partner (including Designated Partner)
Type of body Corporate| | -
- Corporate identify number (CIN) or Foreign company registration number (FCRN) or Limited liability partnership
identification number (LLPIN) or Foreign limited liability partnership identification number (FLLPIN) or any other
identification number
| | -
- Name of the body corporate| | -
- Full address of the registered office or principal place of bussiness in India| | -
- Country where registered| | -
- Obligation of contribution (in?)| | | -
- Contribution received and accounted for (in?)| | | -
- Name and particulars of person signing on behalf of body corporate as nominee| -
- Category| | | -
- DPIN/Income-tax PAN/ Passport number| | | -

Name| | |

Father's Name| | |

Permanent Residential address| | |

Present Residential address| | |

Nationality| | Date of Appointment| | (DD/MM/YYYY)|

Date of Cessation| | (DD/MM/YYYY)| |

Date of charge in designation| | (DD/MM/YYYY)| |

Previous designation| | |

Previous Name, if any| |

*Whether resident in India| YesNo|

*Number of LLP(s) which/he she is a partner| | |

*Number of company(s) in which he/she is a director| | |

Note :Provide the detail of the LLPs (LLPIN) and name of LLP) and companies (CIN, DIN and name of company) as an attachment.

12.| Summary of partners and designated partners as on 31st March of the period for which annual return is being filed.

S.No.

Category

Number of Partners

Number of Designated Partners

Total

Resident in India

Others

(i)

Individuals

(ii)

LLPs

(iii)

Companies

(iv)

Foreign LLPs

(v)

Foreign Companies

(vi)

LLPs Incorporated outside India

(vii)

Companies incorporated outside India

Total

13.| Particulars of penalties imposed on the

| (i) Limited liability partnership| Number of rows required| |

Section

Number

Offence

Penalty

Imposed

| (ii) Partners/Designated partners| Number of rows required| |

[DPIN/income-tax

PAN/Passport number

[Substituted by Notification No. G.S.R. 593(E), dated 10.6.2016 (w.e.f. 1.4.2009).]

Name

of Partner/Designated partner

Name

of Nominee in case of body corporate

Section

Number

Offence

Penalty

imposed]

14.] Particulars of compounding offences| Number of rows required| |

Section

Number

Offence

Date of compounding of offence

15.] *Whether turnover of the LLP exceeds 5 crores| YesNo|

Note :Attach the details of company(s) LLP(s) which partnre/designated partner is a director/partner as the case may be in the below format at a an attachment.

S.No.

CIN/LLPIN

Name of Company/LLP

| Attachments| | List of attachments|-

1.] Detail of LLP and/or company in which partner/designated partner is a director/partner| |

2.] Optional attachment(s) - if any| |-

| | |

| Verification

| To the best of my knowledge and belief, the information given in this form and its attachments is correct and complete.

| To be digitaily signed by a designated partner| |

| *DPIN of the designated Partner| |

| Certificate

| I certify that Annual Return contains true and correct information

| To be digitaily signed by a designated partner| |

| DPIN of the designated Partner| |

| OR

| It is hereby certified that I have Verified the above particulars (including attachment(s) from the records of

|

| and found them to be true and correct. I further certify that all the required attachment(s) have been completely attached to this form.

| Company Secretary In practice| |

| Certificate of Practice Number| |

| Whether associate or fellow| Associate| Fellow|

| |

| This e-form has been taken on file maintained by the registrar through electronic mode and on the basis of statement of correctness given by the filing LLP.

[FORM-12]

[Substituted Form 12 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 12[Pursuant to rule 16(3) of Limited Liability Partnership Rules, 2009]] Form for intimating other address for service of documents

Note - All fields marked in *are to be mandatorily filled.

1.] * Limited Liability Partnership identification number (LLPIN)|

2.] Name of the Limited Liability Partnership (LLP)|

3.] Address of registered office of the LLP|

| *e-mail ID|

4.] Pursuant to section 13(2) of the Limited Liability Partnership Act, 2008, the above named LLP declares the following address, other than the address of its registered office, for serving a document on it or its partner or designated partner :

| * Other Address| *Line I|

| | Line II|

| *City| |

*District|

| *State| |

*Pin code|

| Country| |

ISO country code|

| Phone| |

Fax|

| e-mail ID| |

5.| Date on which consent of all partners is taken as per subrule(2) of rule 16| |

(DD/MM/YYYY)

| Attachments| | List of attachments|-

1.| Copy of the minutes of decision/resolution/consent of requisite partners| |

2.| *Proof of address| |-

3.| The extracts of the relevant provision of the Limited Liability Partnership Agreement, if any| |-

4.| Optional attachment(s) - if any| |-

| | |

| Verification

*| To the best of my knowledge and belief, the information given in this form and its attachments is correct and complete.

*| I being a designated partner of the LLP, am authorised to sign and submit this form.

| To be digitally signed by a designated partner| |

| *DPIN of the designated Partner| |

| Certificate

|

| and found them to be true and correct. I further certify that all the required attachment(s) have been completely attached to this form.

| Chartered Accountant(in-whole-time practice)or| Cost accountant(in whole-time practice)or

| Company Secretary (in whole-time practice)|

| *Whether associate or fellow| Associate| Fellow|

| *Membership number or certificate of practice number|

| |

| This e-form has been taken on file maintained by the registrar through electronic mode and on the basis of statement of correctness given by the filing LLP.

Form 13

[Refer section 24(1) of the Act]

Specimen Of Notice Of Cessation By A Ceasing Partner To Other Partners

Note - All fields marked in *are to be mandatorily filled.

To

All Partners

_____ Limited Liability

Partnership

(Registered Address)

All Partners

_____ Limited Liability

Partnership

(Other address declared by the Limited Liability Partnership for service of documents)

Date

(DD/MM/YYYY)

[Date should be at least 30 days before the date partner intends to resign]

In accordance with the provisions of section 24(1) of the Limited Liability Partnership Act, 2008, I

(Name of Partner)

do hereby give notice of my intention to resign as a partner of the

(name of the LLP) with effect from

(DD/MM/YYYY).

Name of the partner

Address

Name of the Authorised Signatory

Signatures

#Applicable where the partner is a body corporate. Copy of authorization to be attached.

Date:

Place:

[Form 14]

[Substituted by Notification No. G.S.R. 418(E), dated 13.4.2016 (w.e.f. 1.4.2009).]

[See rule 33]

Form for intimating the Registrar of Firms, of conversion of the firm into limited liability partnership

Note:- All fields marked in * are to be mandatorily filled.

Part A ? Conversion of firm into limited liability partnership

1

*Name of the Firm

{|

|-

| 2

| *Principal address of the firm

| {|

|-

|

|}

|-

| 3

| *Whether the firm is registered under the Partnership Act,

1932.

| {|

|-

|

|}

| Yes

| {|

|-

|

|}

| No

|-

|

| If yes, date of registration

| {|

|-

|

|}

|

|

|-

|

| Registration No.

| {

|-

|

|}

|

|

|-

|

| If no, then whether the firm is registered under any other law

| {

|-

|

|}

| Yes

| {

|-

|

|}

| No

|-

|

| If yes, name of the Statute

| {

|-

|

|}

|

|

|-

|

| Date of registration

| {

|-

|

|}

|

|

|-

|

| Registration No.

| {

|-

|

|}

|

|

|}

Part B ? Particulars of the Limited Liability Partnership into which the aforesaid firm has been converted

1

*LLPIN

{|

|

|

|-

| 2

| *Name of the Limited liability partnership

|-

|

| {|

|-

|

|}

|-

| 3

| *Date of Incorporation

| {|

|-

|

|}

| (DD/MM/YYYY)

|-

| 4

| *Address of the registered office

|-

|

| *Line I

| {|

|-

|

|}

|-

|

| *Line II

| {|

|-

|

|}

|-

|

| *City

| {|

|-

|

|}

|-

|

| *State

| {|

|-

|
}
|-
|
| *ISO Country Code
{
}
*PIN code
{
-
}
-
Phone (with ISD Code)
{
-
}
Fax
{
-
}
-
*Email
{
-
}
}

Attachments

1. Copy of the certificate of in corporation of Limited Liability.
2. Optional Attachment's, if any.

* Certificate

1
{
Partner of the
{
-
}
(name of the LLP)
-
hereby give
notice of conversion of the

|
|-
|
{
}
-
(name of
pre-converted firm) into the said limited liability partnership
on
{
-
}
-
day of
{
-
}
-
*Signature of the Partner of LLP
{
-
}
-
*DIN/DPIN No.
{
-
}
-
*Date
{
-
}
-
*Place
{
-
}

|

|}

[Form-15]

[Substituted Form 15 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 15[Pursuant to rule 17 of Limited Liability Partnership Rules, 2009]] Notice for change of place of registered office

Note - All fields marked in *are to be mandatorily filled.

1.| * Limited Liability Partnership identification number (LLPIN)|

2.| (a) Name of the Limited Liability Partnership (LLP)|

| (b) Present Address of the registered office of the LLP|

3.| (a) New Address of registered office of the LLP

| | Line I|

| | Line II|

| (b) *City| |

(c) *District|

| (d) *State| |

(e) *Pin code|

| (f)Country| |

(g)ISO country code|

| (h) Phone| |

(i) Fax|

| (j) *e-mail ID| |

4.| *Name of the office of new register

|

5.| *The full address of the police station under whose jurisdiction the new registered office address of the limited liability partnership is situated

| (a) *Name| |

| (b) *Address| Line I|

| | Line II|

| (c) *City/Town/Village|

| (d) *Tehsil| |

(e) *District|

| (f) *State| |

(g) *Pin code|

6.| *Particulars of prosecutions initiated against or show cause notice received by the LLP for alleged offences under the Act.

|

7.| *Change of place of registered office is -

| Within the same city/town/village.

| From one place to another place within the same State.

| Within the State from the jurisdiction of one Registrar to the jurisdiction of another Registrar.

| Change of place of the registered office from one State to another State.

8.| Dates of publication of public notice in the newspapers| | (DD/MM/YYYY)

| (Applicable where change of place of the registered office is from one State to another).

9.| Dates of which consent has been taken under sub-rule(1) of Rule17| | (DD/MM/YYYY)

| Attachments| | List of attachments|-

1.| *Proof of changed address of registered office.| |

2.| Copy of the minutes of decision/resolution/consent of partners.| |-

3.| The extracts of the relevant provision of the Limited Liability Partnership Agreement, if any| |-

4.| Copies of public notice, if applicable.| |-

5.| Consent of secured creditors, if applicable| |-

6.] Optional attachment(s) - if any| |-

| | |

| Verification

*| To the best of my knowledge and belief, the information given in this form and its attachments is correct and complete.

*| I being a designated partner of the LLP, am authorised to sign and submit this form.

| To be digitally signed by a designated partner| |

| *DPIN of the designated Partner| |

| Certificate

|

| and found them to be true and correct. I further certify that all the required attachment(s) have been completely attached to this form.

| Chartered Accountant(in-whole-time practice)or| Cost accountant(in whole-time practice)or

| Company Secretary (in whole-time practice)|

| *Whether associate or fellow| Associate| Fellow|

| *Membership number or certificate of practice number|

| |

| This e-form has been taken on file maintained by the registrar through electronic mode and on the basis of statement of correctness given by the filing LLP.

OR

| For office use only :

| eForm Service request number (SRN)| | eForm filing date| | (DD/MM/YYYY)

| Digital signature of the authorising officer

| This e-Form is hereby registered| | |

| Date of signing| | (DD/MM/YYYY)| |

Government of India Ministry of Corporate Affairs

Central Registration Centre

[Form 16]

[Substituted by Notification No. S.O. 896 (E), dated 18.9.2018 (w.e.f. 1.4.2009).]

[Refer Rule 11(3) of the Liability Partnership Rules, 2009]

Certification of Incorporation

LLP Identification Number:

It is hereby certified that is incorporated pursuant to section 12(1) of the Limited Liability Partnership Act 2008.

Given under my hand at Manesar this day of Two Thousand

For and on behalf of the Jurisdictional Registrar of Companies

Registrar of Companies

Central Registration Centre

Disclaimer: This certificate only evidences incorporation of the LLP on the basis of documents and declarations of the applicant(s). This certificate is neither a license nor permission to conduct business or solicit deposits or funds from public. Permission of sector regulator is necessary wherever required. Registration status and other details of the LLP can be verified on www.mca.gov.in

Mailing Address as per record available in Registrar Office:

[Form-17]

[Substituted by Notification No. S.O. 896 (E), dated 18.9.2018 (w.e.f. 1.4.2009).]

LLP FORM NO.17

[Pursuant to rule 38(1) of Limited Liability Partnership Rules, 2009]

Application and statement for the conversion of a firm into Limited Liability Partnership (LLP)

Note - All fields marked in *are to be mandatorily filled.

Part A : Application

1.] Service Request Number of RUN-LLP

2.] Name of the Limited Liability Partnership (LLP)

3.| * Name of the firm

4.| Principal address of the firm

| * Line I

| Line II

| * City

|

* District|

| * State

|

* Pin code|

| * Country

| ?

ISO country code|

| Phone

|

Fax|

| *e-mail ID

|

5.| (a) *Whether the firm is registered under the Partnership Act, 1932YesNo

| If yes, date of registration

| (DD/MM/YYYY)

Registration number

||

| If no, whether the firm is registered under any other lawYesNo

| If yes, the name of the Statute under which registered

|

|

| If yes, date of registration

| (DD/MM/YYYY)

Registration number

|

| (b) *Date of agreement by which firm was formed

| (DD/MM/YYYY)

6.| *Total number of partners in the firm

|||

7.| *Total capital contribution in the firm (in Rs.)

|

8.| *Total number of partners in the LLP

|

9.| * Whether all the partners of firm have given their consent for conversion of the firm into the limited liability partnership. (attach the copy of the consent.)YesNo

10.| *Whether all the partners of the limited liability partnership comprise all the shareholders of the company and no one else.YesNo

11.| *Whether up to date Income-tax return is filed under the Income-tax Act, 1961.YesNo

| If Yes, indicate the financial year end date upto which such return has been filed

| (DD/MM/YYYY)|

12.| *Whether any proceeding by or against the company is pending in any Court or Tribunal or any other Authority.YesNo

| If yes, particulars of such proceedings in the following manner

| Number of proceedings

|

Name of Court/Tribunal/Authority

Particulars

13. | *Whether any earlier application for conversion of the said firm into limited liability partnership was refused by the Registrar. YesNo

| If yes, give SRN of earlier Form 17 and the reasons for refusal: -

| (a) SRN

|

| (b) Reasons for refusal of earlier Form 17:

|

14. | *Whether any conviction, ruling, order, judgment of any Court, Tribunal or other No authority in favour of or against the firm are subsisting. YesNo

| If yes, detail thereof in following manner: -

| Number of proceeding

|

Section and the title of relevant Act

Particulars

Name of Court/Tribunal/Authority

15. | (a). *Whether there are any secured creditors YesNo

| (b) Whether consent of all the secured creditors for conversion of the firm into limited partnership has been obtained YesNo

| If Yes, attach the list and consent of such creditors

16. | *Whether any clearance, approval or permission for conversion of the company into limited liability partnership is required from any body/ authority YesNo

| If Yes, whether the applicable approvals from the concerned body/authority or authorities have been obtained. YesNo

Part B - Statement

| Declaration

*1. I, partner of{|

| -

|

| }

|

| registered under the Indian Partnership Act, 1932 or under

|

| at

| (name of the place) in the

| State/UT of

| Territory on

| (DD/MM/YYYY) Registration number

| and also named in the incorporation document of

|

| as a partner or designated partner give my consent for the conversion of the said firm (M/s)

|

| into the limited liability partnership

| *2. I state that I shall be personally liable (jointly and severally with the limited liability partnership) for the liabilities and obligations of the firm which were incurred prior to the conversion or which arose from any contract entered into prior to the conversion.

| *I further state as under :

| (i) that all the requirements of the Limited Liability Partnership Act, 2008 and the rules made thereunder have been complied with, in respect of conversion of private company/ unlisted public company into limited liability partnership and matters precedent and incidental thereto;

| (ii) that all the partners of the limited liability partnership comprise all the partners of the firm and no one else;

| (iii) that the applicable clearances, approvals or permissions for conversion of the firm into a limited liability partnership from any body/ authority have been obtained.

| (iv) that the consent of all the secured creditors for conversion of the firm into limited liability partnership has been obtained;

| (v) that to the best of my knowledge and belief, the information given in this form and its attachments is correct and complete.

Attachments

| | List of attachments|-

1.| *Statement of consent of partners of the firm.

|

2.| *Statement of Assets and liabilities of the firm duly certified As true and correct by the Chartered Accountant in practice.

|-

3.| Copy of acknowledgement of latest income tax return.

|-

4.| *List of all the secured creditors along with their consent to the conversion.

|-

5.| Approval from any other body/authority.

|-

6.| Optional attachment(s)- if any

|-

| | |

| To be digitally signed by a designated partner

|

| *DIN/DPIN/PAN of the designated partner

|

| Certificate

| It is hereby certified that I have verified the above particulars from the books and records of

|

| and found them to be true and correct.I further certify that all required attachment(s) have been completely attached to this form.

| *Chartered accountant in whole-time practice

Cost accountant in whole-time practice

| Company secretary in whole-time practice

| *Whether associate or fellow

Associate

Fellow

|

| *Membership number or certificate of practice number

| |

| For office use only :

| E form Service request number (SRN)

| e Form filing date| | (DD/MM/YYYY)

| Digital signature of theauthorising officer

| This e-Form is hereby approved

| | -

| This e-Form is hereby rejected

| |

| Date of signing

| (DD/MM/YYYY)| |

[FORM-18]

[Substituted Form 18 by Notification No. S.O. 896(E) dated 18.9.2018 (w.e.f. 1.4.2009).]

LLP FORM NO. 18[Pursuant to Paragraphs 2 and 3 ofThird Schedule, Paragraphs 2, 3, and 4 ofFourth Schedule of the Act and rule39(1) and 40(1)] of Limited LiabilityPartnership Rules, 2009]

Application and Statement for conversion ofa private company/unlisted publiccompany into limited liability partnership (LLP).

Note - All fields marked in * are to be mandatorily filled.

Part A : Application

1.| Service Request Number (SRN) of RUN-LLP

2.| *Name of the proposed LLP

3.| *Corporate Identity Number (CIN)

|

4.| Name of the Company

5.| Date of incorporation

| (DD/MM/YYYY)

6.| Name of office of Registrar of Companies

7.| (a) Address of the registered office of the company

| (b) *e-mail ID of the company

8.| *Total number of shareholders

|

9.| Total number of partners in the LLP

|

10.| *Whether all the shareholders of the company have given their consent for conversion of the company into the limited liability partnership.

Yes| No

11.| *Whether all the partners of the limited liability partnership comprise all the shareholders of the company and no one else.

Yes| No

12.| *Whether any security interest in the assets of the company is subsisting or in force.

Yes| No

| If yes, give details

13.| *Whether up to date Income-tax return is filed under the Income-tax Act, 1961

Yes| No

| If yes, indicate the financial year end date upto which such return is filed

| (DD/MM/YYYY)

14.| *Whether any prosecution initiated against or show cause notice received by the company for alleged offences under the Companies Act, 2013.

Yes| No

| If yes, give details in the following manner

| Number of cases

|

Date of issue of show cause notice

Section of the Companies Actunder which action being initiated

Status (reply sent or under

examinationby concerned

Authority)

15.| *Whether any proceeding by or against the company is pending in any Court or Tribunal or any other Authority.

Yes| No

| If yes, give details in the following manner: -

| Number of Proceeding

|

Name of Court or Tribunal

Or Authority

Particulars of such proceedings

16.| *Whether any earlier application for conversion of the said company into limited liability partnership was refused by the Registrar.

Yes| No

| If yes, give SRN of earlier Form 18 and the reasons for refusal:

| (i) SRN

|

| (ii) Reasons

17.| *Whether any conviction, ruling, order, judgment of any Court, Tribunal or other authority in favour of or against the company is subsisting.

Yes| No

| If yes, details thereof in following manner: -

| Number of proceeding

|

Section and the title of relevant Act

Particulars

Name

of Court or Tribunal

or

Authority

18.| (a) *Whether there are any secured creditors

Yes| No

| (b) Whether consent of all the secured creditors for conversion of the company into limited partnership has been obtained

Yes| No

| If Yes, attach the list and consent of such creditors

19.| *Whether any clearance, approval or permission for conversion of the company into limited liability partnership is required from any body/ authority

Yes| No

| If Yes, whether the applicable approvals from the concerned body/authority have been obtained

Yes| No

20.| *Whether up to date documents including latest balance sheet and annual returns under Companies Act, 2013 have been filed.

Yes| No

| Part B- Statement

Declaration

*I, the shareholder of{

|-

|

|}

|

| and also named in the Incorporation document of

|

| as a partner or designated partner give my consent for the conversion of the said company

|

| into the limited liability partnership

| *I State as under :

| (i) that all the requirements of the Limited Liability Partnership Act, 2008 and the rules made thereunder have been complied with, in respect of conversion of private company/ unlisted public company into limited liability partnership and matters precedent and incidental thereto;

| (ii) that all the partners of the limited liability partnership comprise all the shareholders of the company and no one else;
| (iii) that the applicable clearances, approvals or permissions for conversion of the company into a limited liability partnership from any authority/ authorities have been obtained.

| (iv) that the consent of all the secured creditors for conversion of the company into limited liability partnership has been obtained;

| (v) that all the documents due for filing including latest balance sheet and annual return have been filed under the provision of the Companies Act, 2013;

| (vi) that to the best of my knowledge and belief, the information given in this form and its attachments is correct and complete.

| Attachments

| List of attachments|-

1.| *Statement of shareholders.

|

2.| *Statement of Assets and Liabilities of the company duly certified as true and correct by the auditor.

|-

3.| List of all the secured creditors along with their consent

|-

4.| Approval from any other body/authority.

|-

5.| *Copy of acknowledgement of latest income tax return.

|-

6.| Optional attachment(s)- if any

|-

|||

| To be digitally signed by a designated partner

|

| * DIN/DPIN/PAN of the designated partner

|

| Certificate

| It is hereby certified that I have verified the above particulars from the books and records of

|

| and found them to be true and correct.

| I further certify that all required attachment(s) have been completely attached to this form.

| Chartered accountant in whole-time practice

Cost accountant in whole-time practice

| Company secretary in whole-time practice

| *Whether associate or fellow

Associate| Fellow| |

| *Membership number or certificate of practice number

||

| For office use only :

| E form Service request number (SRN)

| e Form filing date| | (DD/MM/YYYY)

| Digital signature of the Authorizing officer

| This e-Form is hereby approved

|||-

| This e-Form is hereby rejected

||

| Date of signing

| (DD/MM/YYYY)| |

Government of India Ministry of Corporate Affairs

Central Registration Centre

[Form 19]

[Substituted Form 19 by Notification No. S.O. 896(E) dated 18.9.2018 (w.e.f. 1.4.2009).]

[Refer Rule 32(1) of the LLP Rules, 2009]

Certificate of Registration on Conversion

of

.....

[Firm/company]

to

.....

[Insert name of limited liability partnership]

LLP Identification Number:

It is hereby certified that is this day registered pursuant to section 58(1) of the LLP Act 2008.

Given under my hand at Manesar this day of, Two thousand

For and on behalf of the Jurisdictional Registrar of CompaniesRegistrar of CompaniesCentral Registration Centre

Disclaimer: This certificate only evidences incorporation of the LLP on the basis of documents and declarations of the applicant(s). This certificate is neither a license nor permission to conduct business or solicit deposits or funds from public. Permission of sector regulator is necessary wherever required. Registration status and other details of the LLP can be verified on www.mca.gov.in

Form 20

[See rule 35(1)]

Limited liability partnership application No. of 20.....

..... Applicants

Affidavit In Support Of Summons

I,..... of solemnly affirm and state as follows :

1. I am the designated partner/ partner of the said limited liability partnership, or the liquidator of the said limited liability partnership in liquidation.

(Where the application is not by the limited liability partnership or its liquidator, but by a partner or creditor, the above paragraph should be suitably altered).

2. The limited liability partnership was incorporated on20____. The document now produced and shown to me is a copy of the incorporation document of the said limited liability partnership.

3. The registered office of the limited liability partnership is situated at.....

4. The limited liability partnership commenced the business of.....(e.g..., manufacture of auto parts etc.) and has been carrying on the same, since.....

5. (Here set out in separate paragraphs the circumstances that have necessitated the proposed compromise or arrangement, the objects sought to be achieved by it, and the terms of the compromise or arrangement. A copy of the proposed compromise or arrangement should be marked as an exhibit and annexed to the affidavit).

6. (Here set out the class of creditors or partners with whom the compromise or arrangement is to be made; where the arrangement is between the limited liability partnership and its partners, it should be stated whether any creditors or class of creditors are likely to be affected by it.)

7. It may be necessary that a meeting (or meetings) of the creditors or partners (if the meeting is only to be of a class of creditors, it should be so stated), should be called to consider and approve the proposed compromise or arrangement.

8. It is suggested that the meeting (or meetings) may be held at the premises of the registered office of the limited liability partnership or at such other place as may be determined by the Tribunal, and on such date(s) and at such time(s) as this Tribunal may direct; and that a chairman may be appointed for the meeting (or for each of the meetings) to be held.

9. It is suggested that notice of the proposed compromise or arrangement and of the meeting may be published once in (here set out the newspapers) and in such other manner as the Tribunal may direct.

10. It is prayed that necessary directions may be given as to the issue and publication of notices and the convening,

holding and conducting of the meeting(s) proposed above.

Solemnly affirmed.

Sd/- A.B.

Before me

Sd/-

Commissioner for Oaths

Date:

Place:

Form 21

[See rule 35(2)]

Limited liability partnership application No..... of 20.....

..... Applicants

Summons For Directions To Convene A Meeting Under Section 60(1)

Let all parties concerned attend the Member of the Tribunal in Chamber on..... day, the Day of 20..., ato' clock in the noon on the hearing of the applicant of the above named limited liability partnership [or of the applicant(s) above named] for an order that a meeting (or separate meetings) be held at of [Here enter the class or classes of creditors or the partners of which the meetings have to be held] of the above limited liability partnership, for the purpose of considering, and if thought fit, approving, with or without modification, a scheme of compromise or arrangement proposed to be made between the limited liability partnership and the said (here mention the class or classes of creditors or partners) of the said limited liability partnership;

And that directions may be given as to the method of convening, holding and conducting the said meeting(s) and as to the notices and advertisements to be issued. And that a chairman (or chairmen) may be appointed of the said meeting(s), who shall report the result thereof to the Tribunal.

Authorized representative for the applicant(s) Officer of the Tribunal.

The affidavit of.....will be used in support of the summons.

Note - Where the limited liability partnership is not the applicant, the summons should be served on the limited liability partnership, or, where it is being wound up, on its liquidator.

Date:

Place:

[FORM-22]

[Substituted Form 22 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 22[Pursuant to rule 35(11), 35(17) and 41(4) of Limited Liability Partnership Rules, 2009]] Notice of intimation of Order of Court/Tribunal/CLB/Central Government to the Registrar

Note - All fields marked in *are to be mandatorily filled.

1.| *Form filed for| Limited Liability Partnership (LLP)|-

| | Foreign Limited Liability Partnership (FLLP)

2.| *Limited Liability Partnership/identification number (LLPIN) or Foreign Limited Liability Partnership identification number (FLLPIN) or Service Request number (SRN) of Form 1|

3.| (a) Name of the Limited Liability Partnership (LLP) or Foreign Limited Liability Partnership (FLLP)|

| (b) Address of the registered office of the LLP or principal place of business in India of FLLP|

| (c) *e-mail ID|

4.| (a) *Order passed by| |

| (b) *Name of the Court or company law board (CLB) or any other competent authority

|

| (c) *Location|

| (d) *Petition or application number

|

| (e) *Order number

|

5.| *Date of passing the order| | (DD/MM/YYYY)

6.| (a) *Section or rule reference|

| (b) If others, mention

|

7.| *Number of days within which order is to be filed with Registrar (To be entered pursuant to aforesaid sections or in terms or court order or CLB order or order of the competent authority, as the case may be)| |

8.| *Date of application to court or CLB or the competent authority for issue of certified copy of order.| | (DD/MM/YYYY)

9.| *Date of issue of certified copy of order| | (DD/MM/YYYY)

10.| *Due date by which order is to be filed with Registrar| | (DD/MM/YYYY)

11.| *Description of order|

12.| In Case of compounding of offence, enter Service request number (SRN)(s) of Form 31.

| | | | |

13.| SRN of relevant form| |

| (Mention the SRN of relevant Form 22 or any other form; if applicable)

14.| *Whether penalty involved or not| Yes| No|

| If yes, SRN of payment of penalty| |

| Attachments| | List of attachments|-

1.| Certificate copy of the order.| |

2.| Optional attachment(s) - if any| |-

| |

| Verification

| To the best of my knowledge and belief, the information given in this Form and its attachments is correct and complete.I have gone through the provisions of the Limited Liability Partnership Act, 2008 and the rules framed there under.I have been authorised to sign and submit this form.

| I, being a designated partner/authorised representative/administrator of the LLP/FLLP, am authorised to sign and submit this form.

| To be digitally signed by

| Particulars of the person signing and submitting the form.| |

| *Name|

| Capscity|

| *Designation| |

| DPIN in case of Designated partner/DPIN or Income-tax PAN in case of Authority representative/Income-tax PAN in case of others or LLP Administrator.|

| |

| For office use only :

| eForm Service request number (SRN)| | eForm filing date| | (DD/MM/YYYY)

| Digital signature of the authorising officer

| This e-Form is hereby Registered| | |

| Date of signing| | (DD/MM/YYYY)| |

[FORM-23]

[Substituted Form 23 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 23[Pursuant to rule 19(1) of Limited Liability Partnership Rules, 2009] Application for direction to Limited Liability Partnership (LLP) to change its name.

Note - All fields marked in *are to be mandatorily filled.

1.| *Category of applicant|

2.| *Limited Liability Partnership identification Number (LLPIN) or Corporate identify Number (CIN) or registration number of other entity seeking direction|

3.| *Name of the LLP/Company/Applicant|

| (a) *Address| Line I|

| | Line II|

| (b) *City| |

(c) *District|

| (d) *State| |

(e) *Pin code|
| (f) *Country| |
| (g) ISO Country code|
| (h) *e-mail ID| |
| (i) Phone| |
(j) Fax|
5.| Detail of the LLP against whom complaint is filed
| (a) *LLPIN| |
| (b) Name of the LLP|
| (c) Address of the registered office of the LLP|
| (d) e-mail ID|
6.| *Grounds of objection|
| Attachments| | List of attachments|-
1.| *Copy of the authority to make application| |
2.| *Copy of incorporation/registration certificate of LLP or the company or registraton certificate of other entity, if any| |-
3.| Optional attachment(s) - if any| |-
| | |
| Verification
*| To the best of my knowledge and belief, in information given in his application and its attachments is correct and complete.
*| I have gone through the provisions of the Limited Liability Partnership Act, 2008, the rule framed there under.
*| I have been authority to sign and submit this application.
| To be digitally signed by
Applicaton or designated partner or managing director or director or manager or secretary	
*Designation	
*DPIN or DIN or Income-tax PAN or Membership number	
For office use only :	
eForm Service request number (SRN)	
Digital signature of the authorising officer	
This e-Form is hereby approved	
This e-Form is hereby rejected	
Date of signing	
[FORM 24]	
[Substituted by Notification No. G.S.R. 470(E), dated 16.5.2017 (w.e.f. 1.4.2009).]	
[Pursuant to rule 37(1)(b) of Limited Liability Partnership Rules, 2009]	
Application to the Registrar for striking off name	
Note - All fields marked in *are to be mandatorily filled.	
1.	* Limited Liability Partnership identification number (LLPIN)
2.	(a) Name of the Limited Liability Partnership (LLP)
(b) Address of the registered office of the LLP	
(c) * e-mail ID	
3.	* Reasons for making the application
4.| * Whether up to date Income-tax returns filed| YesNo
5.| * Date from which the LLP Ceased to carry on business| dd/mm/yyyy
Attachments| | List of attachments|-
(a) * Copy of authority to make the application duly signed by all partners| |
(b) * Copy of acknowledgment of latest Income-tax Return| |-

(c) * Statement of Accounts disclosing Nil Assets and Nil Liabilities [sub-clause (a) of clause (II) of sub-rule(1A) to rule 37]] |-

(d) * Affidavit signed by designated partners [sub-clause (b) of clause (II) of sub-rule(1A) to rule 37]] |-

(e) Optional attachment(s) - if any| |-

||

Verification

To the best of my knowledge and belief, the information given in the application and its attachments is correct and complete. I am aware that I shall be liable for prosecution under section 37 of the LLP Act, 2008 if any part of the statements made or information furnished herein contain any misstatement which is false in any material particular or omission of any material fact.

To be digitally signed by applicant|

* Designated Partner identification Number (DPIN) of the designated partner|

||

For office use only:

eForm Service request number (SRN)|

eForm filing date|

(DD/MM/YYYY)

Digital signature of the authorising officer

This eForm is hereby approved|

|-

This e-Form is hereby rejected|

[FORM-25]

[Substituted Form 25 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 25[Pursuant to rule 18(3) of Limited Liability Partnership Rules, 2009]] Application for the reservation/renewal of name by a Foreign Limited Liability Partnership (FLLP)/Foreign Company.

Note - All fields marked in *are to be mandatorily filled.

1.| This form is for| Reservation of name| Renewal of Reservation

2.| Service request number (SRN) of reservation|

3.| * Name of the FLLP or foreign company|

4.| * Registered office address or principal place of business address of the FLLP or foreign company

| (a) * Address| Line I|

| | Line II|

| (b) * City| |

| (c) * State| |

| (d) * Country| |

| (e) ISO counrty code| |

(f) Pin code|

| (g) * e-mail ID| |

| (h) Phone| |

(i) Fax|

5.| * Name of the applicant|

6.| (a) * Address of the applicant

| | Line I|

| | Line II|

| (b) * City| |

(c) District|

| (d) * State| |

(e) *Pin code|

| (f) * Country| |

| (g) ISO counrty code|

| (h) * e-mail ID| |

| (i) Phone| |

(j) Fax|

7.| * Date of incorporation/registration|

(DD/MM/YYYY)

8.| * Incorporation or registration number|

9.| Country of incorporation or registration|

| Attachments| | List of attachments|-

1.| * Certified copy of the authority to submit the application| |

2.| Certified copy of the incorporation to submit the application| |-

3.| * Optional attachment(s) - if any| |-

|||

Verification

*| To the best of my knowledge and belief, in information given in his application and its attachments is correct and complete.

*| I have gone through the provisions of the Limited Liability Partnership Act, 2008, the rule framed there under.

*| I have been authority to sign and submit this application.

To be digitally signed by applicant|

||

For office only:

eForm Service request number (SRN)|

eForm filing date|

(DD/MM/YYYY)

Digital signature of the authorising officer

This eForm is hereby approved|

|-

This e-Form is hereby rejected|

Date of signing|

(DD/MM/YYYY)

Form 26

[See rule 35(4)]

Form Of Proxy

.....

(Name of limited liability partnership)

I being a partner of the above named limited liability partnership hereby appoint or failing him, as my proxy to vote for me on my behalf at the meeting of the partners of the limited liability partnership to be held on the day of 20.....

Signed this day of 20.....

.....

Signature of Partner

Place:

Form 27

[See rule 34(1)]

FORM FOR REGISTRATION OF PARTICULARS BY FOREIGN LIMITED LIABILITY PARTNERSHIP

Note - All fields marked in *are to be mandatorily filled.

1. *Name of the limited liability partnership incorporated or registered outside India:

2. (i)

*Country where the limited liability partnership is incorporated

(ii) *Details of relevant Statute under which the limited liability partnership has been incorporated

(iii) *Details of the authority under which limited liability partnership is establishing a place of business in India

3. *State of principal place of business in India

4. (i)

*Date of establishment of principal place of business in India

(ii) *Date on which approval of Reserve Bank of India obtained

5. Full address of the registered or principal office of the limited liability partnership incorporated or registered outside India:

*Line 1

*Line 2

*City

District

*State

*PIN Code

Country

*E-mail ID

6. *Full address of the office of the limited liability partnership in India which is deemed as its principal place of business in India

*Line I

*Line II

*City

*State

*PIN Code

Phone

Fax

*E-mail ID

7. *List of persons resident in India and authorized to accept on behalf of the limited liability partnership service of process and any notices or other documents required to be served on the limited liability partnership;

*Number of persons authorized

[drop down]

Particulars of person authorized

1. Income-tax permanent account number (PAN)

Name of person resident in India authorized to accept on behalf of the foreign limited liability partnership

*First Name

*Surname

*Father's/Husband's Name:

*Designation:

*Nationality:

*Where the Nationality of origin is different from the above mentioned nationality,

*Nationality of origin:

*Date of birth :

Others (please specify)

If already a partner of partnership firm or limited liability partnership or director of a company, specify the following:

No. of partnership firms in which he is a partner

Dropdown

Names & addresses of the partnership firm(s)

Name:

Address of principal office:

No. of limited liability partnership(s) in which he is a partner

Dropdown

LLPIN and name of the limited liability partnership(s)

LLPIN

Name of limited liability partnership

No. of Company (ies) in which he is a director

Dropdown

DIN

Name and CIN of the Company(ies)

CIN

Name of Company

Permanent residential address

Address

*Line I

*Line II

*City

*State

*Pin

*ISO Country Code

*Country

Phone

Fax

*Email ID

*Whether present residential address is same as the permanent address

Yes

No

Present residential address

Line I

Line II

City

State

*Pin

*ISO Country Code

*Country

Phone

Fax

Email ID

Note: In case the authorized representatives are more than five, attach details in respect of remaining representatives in separate sheet as attachment.

8. List of partners & designated partners, if any, -

*Number of partners

*Number of designated partners, if any

*Particulars of partners :-

Present Name

*First name :

*Last name :

*Middle name :

Former Name (if any)

*First name :

*Last name :

*Middle name :

*Father's/Husband's Name :

*Nationality :

*Where the Nationality of origin is different from the above mentioned nationality,

*Nationality of origin:

*Date of birth :

*Business/occupation :

Others (please specify)

*Whether designated partner

Yes

No

Usual residential address

Address

*Line I

*Line II

*City

*State

*Pin

*ISO Country Code

*Country

Phone

Fax

Email ID

*Whether nominee of a body corporate

Yes

No

If Yes,

(i) Name of the body corporate

(ii) Address of registered or principal office of the body corporate

Line I

Line II

City

State

Pin

ISO Country Code

Phone

Fax

Email ID

Note:- In case the partners/designated partners are more than five, attach details in respect of remaining partners/designated partners in separate sheet as attachment.

Attachments

1. Copy of the incorporation document or other instrument constituting or defining the constitution of the limited liability partnership certified in the manner specified in the sub-rule (2) of rule 34.
2. Extracts of the Statute under which the foreign limited liability partnership has been set up.
3. Copy of authority under which the foreign limited liability partnership is establishing the place of business in India
4. Copy of approval of Reserve Bank of India for allowing the foreign limited partnership to establish place of business in India
5. If the above instrument is not in English then the translated version of the documents, certified in the manner specified in the sub-rule (5) of rule 34.
6. Power of attorney in favour of authorized representative
7. Optional attachment.

Verification

To the best of my knowledge and belief, the information given in this Form and its attachments is correct and complete.

I have gone through the provisions of the Limited Liability Partnership Act, 2008 and the rules framed there under in respect of establishment of place of business by a foreign limited liability partnership.

I am authorised to sign and submit this form.

To be digitally signed by:

Authorized representative of foreign limited liability partnership

Dated:

Place:

Modify

Check Form

Pre-scrutiny

Submit

For Office Use Only

For Office Use Only

Digital signature of the authorizing officer

Confirm submission

This e-form is hereby registered

[FORM-28]

[Substituted Form 28 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 28[Pursuant to rule 34(3) of limited Liability partnership Rules, 2009]]-

Alteration in the -|-

(A) the incorporation document, or other instrument constituting or defining the constitution of a limited liability partnership incorporated or registered outside India;or|-

(B) the registered or principal office of a limited liability partnership incorporated or registered outside India; or|-

(C) the partner of designated partner if any of a limited liability partnership incorporated or registered outside India.|-

Note - All fields marked in *are to be mandatorily filled.

1.| * Foreign Limited Liability Partnership identification number (LLPIN)|

2.| Name of the Limited Liability Partnership (LLP) incorporated or registered outside India|

3.| * Financial year ended on|

(DD/MM/YYYY)

4.| The above mentioned foreign LLP having established a place of business in India at.

|

| * e-mail ID|

| hereby gives you notice of the alteration in -

| | the incorporation document, or other instrument constituting or defining the constitution of a limited liability partnership incorporated or registered outside India; or

| | the registered or principal office of a limited liability partnership incorporated or registered outside India; or

| | the pratner or designated partner, if any of a limited liability partnership incorporated or registered outside India.

(A)| The incorporation document, or other instrument constituting or defining the constitution of a limited liability partnership incorporated or registered outside India.

| (i) A brief description of the alteration is given hereunder

|

(ii)| Date of Alteration|

(DD/MM/YYYY)

| Note :Certified copy of the decision and/or the copy of the amended document should be enclosed. If the decision is not in english a certified translation thereof must be enclosed.

(B)| The registere or principal office of a limited liability partnership incorporated or registered outside India.

(i)| The registered/principal office of the LLP in the county of incorporation has been shifted with effect from.|

(DD/MM/YYYY)

(ii)| The new address is as under:-

Line I

Line II

City

State

Pin Code|

ISO county code|

(C)| The partner or designated partner of a limited liability partnership incorporated or registered outside India.

(i)| * Number of partner(s) or designated Partner(s) for which this form is being filed.|

| Note :The details of alteration in partners and/or designated partners are as to be provided as an attachment

| Attachments| | List of attachments|-

1.| * Copy of the decision or other document through which alteration has been made.| |

2.| Copy of the amended incorporation document or other instrument constituting or defining the constitution of the limited liability partnership certified in the manner specified in the sub-rule (2) of rule 34.| -

3.| If the above instrument is not in English then the translated version of the documents, certified in the manner specified in the sub-rule (5) of rule 34.| -

4.| Copy of alteration in partners and/or designated partner(s) details| -

5.| Optional attachment(s) - if any| -

|||

Verification

*| To the best of my knowledge and belief, the information given in this Form and its attachments is correct and complete.

*| I have gone through the provisions of the Limited Liability Partnership Act, 2008, and the rule framed there under. in respect of establishment of place of business by a foreign limited liability Partnership

*| I am authorised to sign and submit this form.

To be digitally signed by

Authorised representative of foreign limited liability partnership|

DPIN or Income-tax PAN of the authorised representative|

||

For office only:

eForm Service request number (SRN)|

eForm filing date|

(DD/MM/YYYY)

Digital signature of the authorising officer

This eForm is hereby registered|

Date of signing|

(DD/MM/YYYY)

[FORM-29]

[Substituted Form 29 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 29[Pursuant to rule 34(3) and 34(8) of limited Liability partnership Rules, 2009]]-

(A) Alteration in the -incorporation or registration of limited liability partnership incorporated or registered outside India;-

(B) Alteration in the name address of any of the persons authorised to accept service on behalf of a foreign limited liability partnership in India;-

(C) Alteration in the principal place of business of foreign limited liability partnership in India;-

(D) Cessation to have place of business In India.|-

Note - All fields marked in *are to be mandatorily filled.

1.| * Foreign Limited Liability Partnership Identification number (FLLPIN)|

2.| Name of the Foreign Limited Liability Partnership (LLP)|

3.| The above mentioned foreign LLP having established a place of business in India at.

|

| * e-mail ID|

| hereby gives notice for-

| | alteration in the -incorporation or registration of limited liability partnership incorporated or registered outside India;

| | alteration in the name address of any of the persons authorised to accept service on behalf of a foreign limited liability partnership in India;

| alteration in the principal place of business of foreign limited liability partnership in India;

| cessation to have place of business In India.

(A)| Alteration in the -incorporation or registration of limited liability partnership incorporated or registered outside India;

| (1) A brief description of the alteration is given hereunder

|

| (2)| Date of Alteration|

(DD/MM/YYYY)

| (3)| * Whether there is any change in name of limited partnership incorporated or registered outside India| YesNo

| If yes specify changed name|

(B)| Alteration in the name address of any of the persons authorised to accept service on behalf of a foreign limited liability partnership in India;

(1)| * Number of authorised persons for which form is being filed.|

I * Type of alteration| Addition of a person authorised to accept service|-

| Modification to particulars of a person already authorised to accept service|-

| Deletion of a person authorised to accept service|-

* Date of alteration|

(DD/MM/YYYY)|-

Designated Partner Identification Number (DPIN) or|-

Income-tax permanent account number (Income-tax PAN)|

|-

* Name of person resident in India authorized to accept on behalf of the foreign limited liability partnership|-

First Name

Last Name

Middle Name

* Father's Name|-

First Name

Last Name

Middle Name

* Designation|

* Nationality|

Whether the Nationality of origin is different from the above mentioned nationality.|-

* Nationality of Origin|

* Date of birth|

(DD/MM/YYYY)|-

* Permanent Residential Address|-

Line I

Line II

* City

* State

Pin code|

ISO country code|

* Whether present residential address is same as the permanent residential address :| YesNo|-

If no, present residential address|-

Line I

Line II

* City

* State

Pin code|

* Country

* ISO country code

Phone|

Fax|

* e-mail ID

* Number of LLP(s) in which the authorised representative is a partner|

* Number of Company(s) in which the authorised representative is a director|

* Remarks as to alteration|

(C) Alteration in the address of principal place of business of the foreign limited liability partnership in India;|-

| | 1. * The principal of business in India was shifted with effect from|

(DD/MM/YYYY)|-

| 2. * The changed address is as under

| Line I

| Line II

| * City|

| * District|

* State|

| * Pin code|

* Country|

| ISO counrty code|

Phone

Fax

| * e-mail ID|

(D) That it intends to close its place of business in India.-

| | 1. * Date of cessation of place of business in India|

(DD/MM/YYYY)|-

| 2. * It is hereby declared that the LLP

| is not maintaining the place of business at any other place in India.

| has filed with the Registrar all documents due for filing

Note :Attach the detaisl of company (s)/LLP(s) in which authorised representative is a director/partner as the case may be in the below format as an attaaohment|-

S.No.

CIN/LLPIN

Name of Company/LLP

| Attachments| | List of attachments|-

1.| Copy of the decision or other document through which alteration has been made.| |

2.| Copy of approval of Reserve Bank of India for cessation of place of establishment of office in India of the foreign limited liability partnership| |-

3.| Power of attorney in favour of authorised representative(s)| |-

4.| Details of LLP and/or company in which authorised representative is partner/director| |-

5.| Optional attachment(s) - if any| |-

| | |

Verification

*| To the best of my knowledge and belief, the information given in this Form and its attachments is correct and complete.

*| I have gone through the provisions of the Limited Liability Partnership Act, 2008, and the rule framed there under. in respect of establishment of place of business by a foreign limited liability Partnership

*| I am authorised to sign and submit this form.

To be digitally signed by Authorised representative of FLLP|

DPIN or Income-tax PAN of the authorised representative|

| |

For office only:

eForm Service request number (SRN)|

eForm filing date|

(DD/MM/YYYY)

Digital signature of the authorising officer

This eForm is hereby registered|

Date of signing|

(DD/MM/YYYY)

Form 30

[See rule 34(10)]

Certificate For Establishment Of Place Of Business In India

Foreign Limited Liability Partnership Registration Number :.....
Year.....

I hereby certify that Form No 27 datedfiled pursuant to rule 34 of the Limited Liability Partnership Rules, 2009 informing establishment of place of business in India at with effect from by a Limited Liability Partnership originally incorporated in has been registered.
Given under my hand at this day of Two Thousand

Registrar

(Seal)

[FORM-31]

[Substituted Form 31 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 31[Pursuant to rule 41(1) of Limited Liability Partnership Rules, 2009] Application for compounding of an offence under the Act

Note - All fields marked in *are to be mandatorily filled.

1.| * Category of applicant|

2.| Limited Liability Partnership Identification number (LLPIN) or Foreign Limited Liability Partnership (FLLP)|

3.(a)| Name of the Limited Liability Partnership (LLP) or Foreign Limited Liability Partnership (FLLP)|

(b)| Address of the registered office of the LLP or principal place of business in India of foreign LLP|

(c)| e-mail ID|

4.| Details of applicant (in case category is others)

| (a) Name|

| (b) Address| Line I|

| | Line II|

| (c) City|

| (d) State|

| (e) Country|

| (f) ISO country code|

| (g) Pin code|

| (h) e-mail ID|

5.| * Name of the office of registrar to which application is being made

|

6(a)| * Whether application for compounding of offence is filed in respect of.

LLP or foreign LLP| Designated Partner| Partner| Authorised Representative| Other

(b)| Number of person(s) for whom the application is being filed.|

(c)| Details of person(s) for whom the application is being filed.

(i) Category|

|

Designated Partner identification number (DPIN) or|

Income-tax Permanent Account Number or| Passport number|

|

Name|

(d)| * Whether Show Cause Notice received| YesNo

(e)| If yes Notice number and date of notice

7.| *(i) Please indicate the section of the Act under which offence has been committed.

| * (ii) Indicate the relevant penalty provisions of the Act.

8.| * Whether the offence has been made good as on date of application, if applicable| YesNo

| If yes, the date of making the default good|

(DD/MM/YYYY)

| Brief particulars as to how the default has been made good.

9.| * Whether copy of the latest statement of assets and liabilities attached| YesNo

| Attachments| | List of attachments|

1. Copy of detailed application |
2. Copy of show cause notice received |
3. Copy of authority to make the application on behalf of the LLP |
4. Copy of authority to make the application on behalf of other persons |
5. Copy of latest statement of asset and liabilities |
6. Optional attachment(s) - if any |

||

Verification

* To the best of my knowledge and belief, the information given in this application and its attachments is correct and complete.

* I have gone through the provisions of the Limited Liability Partnership Act, 2008, and the rule framed there under.

* I have been authorised to sign and submit this application on behalf of the person(s) whose name(s) is/are mentioned above.

To be digitally signed by

Designated partner or Authorised representative or Partner of LLP or Applicant |

Designation |

Designated Partner identification number (DPIN) or |

Income-tax Permanent Account Number or | Passport number |

To be digitally signed by

Chartered Accountant (in-whole-time practice) or | Cost accountant (in whole-time practice) or

Company Secretary (in whole-time practice) |

Whether associate or fellow | Associate | Fellow

Membership number or certificate of practice number |

||

For office only:

eForm Service request number (SRN) |

eForm filing date |

(DD/MM/YYYY)

Digital signature of the authorising officer

This e-Form is hereby approved |

|

This e-Form is hereby rejected |

Date of signing |

(DD/MM/YYYY)

[FORM-32]

[Inserted Form 32 by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 1.4.2009)]

LLP FORM NO. 32[Pursuant to rule 36(6) of Limited Liability Partnership Rules, 2009] Form for filing addendum for rectification of defects or incompleteness

Note - All fields marked in *are to be mandatorily filled.

1. * Service request number (SRN) of relevant form(s) |

(Mention SRN of relevant form(s) in respect of which addendum is being filed Ensure that correct SRN is mentioned in this field and verify the system displayed details below)

2. (a) Date of SRN |

(DD/MM/YYYY) |

(b) Form number(s) |

3. Limited Liability Partnership Identification Number (LLPIN) or Foreign Limited Liability Partnership Identification Number (FLLPIN) or Corporate identity Number (CIN) |

4. (a) Name of Limited Liability Partnership (LLP) or Company |

(b) Address of the registered office of the LLP or Company or of the principal place of business in India of Foreign LLP |

(c) Name of the person filing this form (applicable) in case of filing in respect of non LLP or LLP yet to be incorporated |

|

| (d) e-mail ID|

5.| (a) Details of defects pointed out or further information called by the Registrar or any other competent authority

|

| (b) Details of rectification of the defects or further information furnished.

|

| (Ensure that correct type of document is selected from the list of documents given in the drop down below Maximum five documents can be attached)

6.| (a) Type of document|

| (b) Type of document|

| (c) Type of document|

| (d) Type of document|

| (e) Type of document|

|| | List of attachments|-

|| |

|| |-

|| |-

|| |-

|| |-

|| |

| Verification

| To the best of my/our knowledge and belief, the information given above and in the attached document is correct and complete.

| To be digitally signed by

1.| Designated partner (In case of an LLP)|

| or an authorised representative (In case of Foreign LLP)

| Designation|

| Designated Partner Identification number (DPIN) or Income-tax PAN.|

2.| In case the form in respect of which addendum is being filed was signed by director or managing director or manager or secretary or chartered accountant (in whole-time practice) or company secretary (in whole-time practice or cost accountant (in whole-time practice) or partner or applicant or advocate or LLP administrator or others.

| Designation|

|

| Capacity|

| Director identification number (DIN) of the director or Managing Director, or Income-tax PAN of the manager, or Membership number, if applicable or Income-tax PAN of the secretary (secretary of a company who is not a member of ICSI, may quote his/her income-tax PAN) or Income-tax PAN of LLP Administrator or DPIN/Income-tax PAN/Passport number of Partner.

| Certificate

| It is hereby certified that I have Verified the above particulars (including attachment(s) from the records of

|

| and found them to be true and correct, I further certify that all required attachment(s) have been completely attached to this form.

| Chartered Accountant (in-whole-time practice)or| Cost accountant (in whole-time practice)or

| Company Secretary (in whole-time practice)|

| Whether associate or fellow| Associate| Fellow

| Membership number or certificate of practice number|

||

| This form is not required to be signed by the authorising officer as this has been filed in respect of an already filed e-Form

Annexure `A'

1. For registration of Limited Liability Partnership including conversion of a firm or a private company or an unlisted

public company into Limited Liability Partnership :-

(a) Limited Liability Partnership whose contribution does not exceed Rs.

1 lakh

Rs.500/-

(b) Limited Liability Partnership whose contribution exceeds Rs. 1 lakh but does not exceed Rs. 5 lakhs

Rs.

2000/-

(c) Limited Liability Partnership whose contribution exceeds Rs. 5 lakhs but does not exceed Rs. 10 lakhs

Rs.

4000/-

(d) Limited Liability Partnership whose contribution exceeds Rs.

10 lakh

Rs.

5000/-

2. The difference between the fees payable on the increased slab of contribution and the fees paid on the preceding slab of contribution shall be paid through Form 3.

3. For filing, registering or recording any document, form, statement, notice, Statement of Accounts and Solvency, annual return and an application alongwith the Statement for conversion of a firm or a private company or an unlisted public company into LLP by this Act or by these rules required or authorized to be filed, registered or recorded :

(a) Limited Liability Partnership whose contribution does not exceed Rs.

1 lakh

Rs.50/-

(b) Limited Liability Partnership whose contribution exceeds Rs. 1 lakh but does not exceed Rs. 5 lakhs

Rs.

100/-

(c) Limited Liability Partnership whose contribution exceeds Rs. 5 lakhs but does not exceed Rs. 10 lakhs

Rs.

150/-

(d) Limited Liability Partnership whose contribution exceeds Rs.

10 lakh

Rs.

200/-

[[

]-

| 3A. For filing, registering or recording notice of appointment, cessation, change in name, address, designation of a partner or designated partner, intimation of Designated Partner Identification Number and consent to become a partner or designated partner in Form 4.

| Rs. 50

]|

]

[Inserted by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 11.6.2012)]

4. Fee for any application other than application for conversion of a firm or a private company or an unlisted public company into LLP shall be as under :-

(a) An application for reservation of name u/s 16

Rs. 200/-

(b) An application for direction to change the name u/s 18

[Rs.

5,000/-]

[Substituted word "10,000" by Notification No. G.S.R. 24(E) dated 11.1.2010 (w.e.f. 1.4.2009)]

(c) Application for reservation of name under Rule 18(3)

Rs.

10,000/-

(d) Application for renewal of name under rule 18(3)

Rs. 5,000/-

(e) Application for obtaining DPIN under rule 10(5)

Rs. 100/-

(f) [An application for striking off name of defunct Limited Liability Partnership under rule 37

[Inserted by Notification No. G.S.R. 430(E) dated 5.6.2012 (w.e.f. 11.6.2012)]

| Rs. 500/-]

5. Fee for inspection of documents or for obtaining certified copy thereof shall be as under :-

(a) For inspection of documents of an LLP under section 36

Rs.

50/-

(b) For Copy or extract of any document under section 36 to be certified by Registrar

Rs.

5/- per page or fractional part thereof

6. Fee for filing any form or a Statement of Account and Solvency or a notice or a document by foreign limited liability partnership

(a) For filing a document under rule 34(1)

Rs.

5000/-

(b) Any other form or Statement of Account and Solvency or notice or document

Rs.1000/-

Annexure `B'

No.

NAME OF DOCUMENT

PERIOD OF PRESERVATION

(1)

(2)

(3)

1.

Incorporation document [Section 11(1)(b)]

Permanent

2.

Notice of situation of registered office [Section 13]

Permanent

3.

Information with regard to Limited Liability Partnership Agreement or any changes made therein [Section 23(2)]

Permanent

4.

Notice of other address of any limited liability partnership at which documents to be served [Section 13(2)]

Permanent

Annexure `C'

No.

NAME OF Document

PERIOD OF Preservation

(1)

(2)

(3)

1.

Statement of compliance with requirements of the Act by an Advocate or Company Secretary or Chartered Accountant or Cost Accountant in whole time practice and by any person who subscribed his name to the incorporation document [Section 11(1)(c)]

5 years

2.

Notice of a person ceasing to be a partner and any change in the name or address of a partner

5 years

3.

Registered documents relating to LLP struck off under Section 75 together with correspondence or copy of the order of restoration of the LLP into the register

5 years

4.

Annual return of a limited liability partnership 5 years

5.

Consent of candidates to act as designated partner to be filed with the Registrar

[section 7(4)]

5 years

6.

Consent to act as a partner 5 years

7.

Statement by all the partners of firm containing particulars of firm along with application for its conversion into limited liability partnership

5 years

8.

Statement by all the shareholders containing particulars of private company/unlisted public company along with application for its conversion into limited liability partnership

5 years

9.

Certified copy of the order(s) of the Tribunal under section 60/61/62.

5 years

10.

Copy of the order of dissolution of a LLP by Tribunal [Section 63]

5 years

11.

Statement of Account and Solvency

8 years

Annexure `D`

Particulars Of Documents Relating To Limited Liability Partnership

Part I

Name of limited liability partnership

Act under which registered dissolved

Date on which finally destroyed or wound up or struck off

Description of documents with remarks

Date and mode of destruction

(1)

(2)

(3)

(4)

(5)

Particulars Of Documents Other Than Those Specified In Part I

Part II

No. of the file of documents destroyed

Subject to which the document refers

Description of documents destroyed

Date and mode of destruction with remarks

(1)

(2)

(3)

(4)

[Substituted by Notification No. G.S.R. 24(E) dated 11.1.2010 (w.e.f. 1.4.2009)]

Related AI tags, queries and research notes

Translation